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July 16, 2026

BY ELECTRONIC FILING

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street, S.W., Room 112
Washington, D.C. 20436

Re: *Certain Transformers And Components Thereof, Inv. No. 337-TA-_____*

Dear Secretary Barton:

Enclosed for filing, please find the following documents in support of a request by Ayr Energy, Inc., that the U.S. International Trade Commission (“Commission”) institute an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended:

1. One (1) electronic copy of Ayr Energy’s Non-Confidential Verified Complaint pursuant to Commission Rule 210.8(a)(1)(i);
2. One (1) electronic copy of the public exhibits to the Verified Complaint, pursuant to Commission Rules 210.8(a)(1)(i) and 210.12(a)(9);
3. One (1) electronic copy of the confidential exhibits to the Verified Complaint pursuant to Commission Rules 201.6(c) and 210.8(a)(1)(ii);
4. A Statement of Public Interest Regarding the Remedial Orders Sought by Ayr Energy in the Verified Complaint, pursuant to Commission Rule 210.8(b); and
5. One (1) electronic copy of the Certification of Patrick J. McCarthy.



July 16, 2026

Pursuant to the Commission's Rules of Practice and Procedure, the documents also include a request for confidential treatment for Confidential Exhibits 1C and 2C. Please contact me if you have any questions regarding this submission. Thank you for your time and attention to this matter.

Respectfully submitted,

/s/ Patrick J. McCarthy

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Re: *Certain Transformers And Components Thereof*, Inv. No. 337-TA-_____

Dear Secretary Barton:

Pursuant to Commission Rule 201.6, Complainant Ayr Energy, Inc. (“Complainant” or “Ayr Energy”) respectfully requests confidential treatment of certain confidential business information contained in Confidential Exhibits 1C and 2C filed herewith. The information in these exhibits consists of proprietary commercial information, including confidential and proprietary financial data regarding Ayr Energy’s domestic investments in plant, labor, and capital.

The proprietary information described herein qualifies as confidential business information under Commission Rule 201.6 because (i) substantially identical information is not available to the public; (ii) the disclosure of this information would cause substantial competitive harm to Ayr Energy and third parties; and (iii) the disclosure of this information would likely impede the Commission’s efforts and ability to obtain similar information in the future.

Thank you for your attention. Please contact me with any questions regarding this request for confidential treatment.

Respectfully submitted,

/s/ Patrick J. McCarthy

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UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, D.C.

**In the Matter of
CERTAIN TRANSFORMERS AND
COMPONENTS THEREOF**

Investigation No. 337-TA-_____

COMPLAINANT’S STATEMENT ON THE PUBLIC INTEREST

Pursuant to 19 C.F.R. § 210.8(b), Complainant Ayr Energy, Inc. (“Ayr”) submits this statement addressing how issuance of the requested limited exclusion order and cease and desist orders directed to the Accused Products would affect (i) the public health and welfare, (ii) competitive conditions in the U.S. economy, (iii) the production of like or directly competitive articles in the United States, and (iv) U.S. consumers. As set forth below, the requested orders would not adversely affect any of these four factors. To the contrary, the requested orders would *advance* the public interest by stopping falsely certified, falsely advertised, and misappropriating transformer products from entering the U.S. grid supply chain, while leaving ample lawful supply in place to meet U.S. demand. The Commission has denied relief on public-interest grounds only in the narrow circumstance in which “inadequate supply within the United States—by both the patentee and domestic licensees—meant that an exclusion order would deprive the public of products necessary for some important health or welfare need.” *Spansion, Inc. v. Int’l Trade Comm’n*, 629 F.3d 1331, 1360 (Fed. Cir. 2010). This Investigation presents no such circumstance, and Ayr respectfully submits that the Commission need not delegate public interest to the presiding Administrative Law Judge.

I. The requested remedial orders would not adversely affect the public health or welfare

The Accused Products are custom engineered transformer products—including main

power transformers, inverter duty transformers, distribution transformers, and components thereof—supplied to U.S. utilities, renewable energy developers, data center operators, and industrial customers. Exclusion of Respondents’ infringing, misappropriating, and falsely advertised transformer products would not deprive the U.S. grid or U.S. end users of needed equipment. To the contrary, the requested orders would advance the public interest in a safe, reliable, and accurately represented power grid supply chain by:

A. Removing from the U.S. market transformer products falsely advertised as UL certified, cULus Listed, or otherwise certified to applicable U.S. and Canadian safety standards, when, on information and belief, they are not. Safety certifications for high-voltage equipment installed on the U.S. grid are not marketing claims; they are predicates to safe energization of the nation. Allowing falsely certified transformer products to enter the U.S. poses risks to grid reliability, worker safety, and project integrity that the requested orders would mitigate.

B. Removing transformer products marketed under false claims regarding manufacturing experience, lead times, deployment history, and quality control practices—each of which bears directly on the safety, reliability, and timely delivery of critical grid infrastructure.

II. Like or Directly Competitive Articles Are Available and Can Replace Excluded Volume Within a Commercially Reasonable Time

The requested orders are narrowly directed to Respondents’ Accused Products. Ample alternative supply exists and is readily available to U.S. customers:

Ayr’s domestic industry. Ayr designs, engineers, sources, sells, delivers, installs, and commissions transformer systems for the U.S. market and is actively expanding its U.S. operations, project pipeline, and supplier network. Ayr’s proprietary methodologies enable it to generate project-specific proposals in approximately 1–2 days—materially faster than typical industry response times—and Ayr maintains direct relationships with leading global component

suppliers. Ayr is positioned to absorb any additional U.S. demand attributable to exclusion of the Accused Products.

Established U.S. and authorized foreign suppliers. The U.S. large power transformer market is also served by numerous well-established manufacturers with domestic production capacity, including Hitachi Energy (South Boston, Virginia), Siemens Energy (Charlotte, North Carolina), Prolec GE / GE Vernova (Waukesha, Wisconsin), Virginia Transformer Corp. (Roanoke, Virginia), Mitsubishi Electric Power Products (Memphis, Tennessee), HD Hyundai Electric (Montgomery, Alabama), Delta Star (Lynchburg, Virginia), WEG Transformers USA (Washington, Missouri), Pennsylvania Transformer Technology (Canonsburg, Pennsylvania), and Niagara Power Transformer Corp. (Buffalo, New York), among others. The requested orders are not directed to these suppliers and would not impair their continued participation in the U.S. market.

Scope of the requested relief. The requested orders are limited to transformer products that (i) are manufactured, developed, or produced using Ayr's Asserted Trade Secrets, (ii) are marketed or sold using false or misleading commercial representations, or (iii) are marketed or sold in a manner that infringes the AYR ENERGY mark. Lawful, non-infringing, accurately advertised transformer products would not be excluded.

No impact on U.S. manufacturing jobs. On information and belief, the Accused Products are manufactured abroad and imported into the United States. Accordingly, the requested orders would not impair any U.S. manufacturing employment.

The requested orders would not create a supply gap. Any short-term substitution that may be required can be accomplished within a commercially reasonable time given existing market capacity, Ayr's growing U.S. operations, and the availability of unaffected suppliers.

III. The Requested Orders Would Promote, Not Restrain, Competitive Conditions in the U.S. Economy

Respondents' unfair acts distort competition in the U.S. transformer market. Respondents have, on information and belief, used misappropriated trade secrets to enter the U.S. custom transformer market without incurring the substantial investment in proprietary engineering, sourcing, and pricing methodologies that legitimate market participation requires. Respondents have further competed on the basis of materially false claims regarding certifications, manufacturing experience, lead times, deployment history, and quality controls, and have traded on Ayr's mark through paid advertising that displayed AYR ENERGY in consumer-facing ad copy directing customers to Respondents' competing offerings.

Granting the requested relief would restore fair competitive conditions by removing the artificial advantages Respondents have obtained through unfair acts, thereby preserving the incentives for U.S.-focused investment in proprietary engineering, accurate commercial representations, and brand building that underlie a healthy U.S. transformer market. The Commission has repeatedly recognized that "the public interest favors the protection of United States intellectual property rights by excluding infringing imports." *Certain Two-Handle Centerset Faucets & Escutcheons & Components Thereof*, Inv. No. 337-TA-422, Comm'n Op. at 9 (June 19, 2000); *see also Certain Baseband Processor Chips & Chipsets, Transmitter & Receiver (Radio) Chips, Power Control Chips, & Prods. Containing Same, Including Cellular Telephone Handsets*, Inv. No. 337-TA-543, Comm'n Op. at 136–37 (June 19, 2007). Protection of the integrity of the AYR ENERGY mark likewise serves the public interest in a market where customers rely on supplier identity to assess engineering capability, project execution risk, and warranty support.

IV. The Requested Orders Would Not Adversely Affect U.S. Consumers

The relevant purchasers of the Accused Products are sophisticated commercial and institutional buyers—utilities, independent power producers, project developers, data center operators, and industrial customers. These purchasers run multi-supplier bids and have access to numerous lawful alternatives, including Ayr. Exclusion of Respondents' Accused Products would not deprive these purchasers of needed transformer supply. To the extent end user consumers (e.g., ratepayers) are indirectly implicated, their interests are served by ensuring that high-voltage equipment installed on the U.S. grid is accurately certified, accurately described, and sourced from suppliers that compete on lawful terms.

V. Conclusion

The requested limited exclusion order and cease and desist orders are narrowly tailored to remedy Respondents' specific unfair acts, would not create a supply shortage, would protect the public interest in safe and accurately represented grid infrastructure, would restore fair competitive conditions in the U.S. transformer market, and would not adversely affect U.S. consumers. For the reasons set forth above, the public interest favors institution of the requested investigation and entry of the requested relief, and Ayr respectfully submits that this Investigation does not present an instance in which the Commission, the parties, or the public should be required to undergo discovery, the presentation of evidence, or a Recommended Determination on the public interest before the presiding Administrative Law Judge.

Dated: July 16, 2026

Respectfully submitted,

/s/ Patrick J. McCarthy

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UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, D.C.

IN THE MATTER OF
CERTAIN TRANSFORMERS AND
COMPONENTS THEREOF

Investigation No. 337-TA-_____

CERTIFICATION

I, Patrick J. McCarthy, counsel for Ayr Energy, Inc., declare as follows:

1. I am duly authorized by Ayr Energy to execute this certification.
2. I have reviewed Confidential Exhibits 1C and 2C to Ayr Energy's Verified Complaint, for which Ayr Energy seeks confidential treatment.
3. To the best of my knowledge, information, and belief, founded after a reasonable inquiry, substantially identical information to that contained in the exhibits is not available to the public.

I declare under penalty of perjury that the foregoing is true and correct.

Executed this 16th day of July 2026.

Respectfully submitted,

/s/ Patrick J. McCarthy

Patrick J. McCarthy

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**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**IN THE MATTER OF
CERTAIN TRANSFORMERS AND
COMPONENTS THEREOF**

Investigation No. 337-TA-_____

**COMPLAINT UNDER SECTION 337 OF THE
TARIFF ACT OF 1930, AS AMENDED**

COMPLAINANT:

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+1 (650) 203-6511

PROPOSED RESPONDENTS:

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Bangalore, Karnataka 560103
India

ZETWERK MANUFACTURING USA INC.
548 Market St. #70774
San Francisco, California 94104

KRYFS POWER COMPONENTS LTD.
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UNIMACTS GLOBAL, LLC
2 Sedge Road
Lexington, Massachusetts 02420

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EXHIBIT LIST

Ex.	Description
1	Declaration of Anirudh Reddy Edla – Public Version
1C	Declaration of Anirudh Reddy Edla – Confidential Version
2	Declaration of Rahul Arora – Public Version
2C	Declaration of Rahul Arora – Confidential Version
3	Declaration of Srinath Ramakkrushnan in Support of Plaintiffs’ Opposition to Defendant’s Amended Special Appearance and Conditional Motion for Jurisdictional Discovery (Tex. Bus. Ct. filed Aug. 2025) (redacted).
4	California Secretary of State Statement of Information for Zetwerk Manufacturing USA Inc. (filed Nov. 7, 2025).
5	Unimacts Global LLC Contact Us webpage (listing Sloan, Nevada address), available at Unimacts.com (captured 2026).
6	Nevada Secretary of State Entity Information for Unimacts Global, LLC (accessed July 6, 2026).
7	Zetwerk Instagram post describing “Zetwerk-Unimacts” casting solutions (Oct. 13, 2023).
8	Zetwerk Case Study, “Zetwerk-Unimacts Pioneering a Global Paradigm Shift in Solar Pile Supply Chain Dynamics” (archived webpage)
9	Ayr Energy, website and LinkedIn materials concerning AYR ENERGY mark use; TechCrunch, article concerning Ayr Energy (Apr. 15, 2026).
10	Unimacts “Who we are” page (captured July 8, 2026).
11	Consultancy Offer Letter from Jayadev Partners LLP (Ayr Energy) to Yash Jain (Feb. 3, 2025).
12	Zetwerk, transformer knowledge-base webpages concerning pad-mounted, solar, potential, and distribution transformers (captured June 30, 2026) (with emphasis added).
13	Sponsored advertisement for “Unimacts Transformers” appearing in search results for “Ayr energy” and linking to unimacts.com/transformers (captured 2026).
14	LinkedIn Profile of Yash Jain (showing position as Delivery Head – Transformers at Zetwerk)
15	Unimacts Blog, “High-Reliability Transformers for U.S. Utilities, Developers & Industrial Power Systems” (Nov. 27, 2025).
16	Zetwerk Knowledge Base Article, “Custom-Engineered Special Application Transformers for High-Performance Industrial Systems.”
17	Zetwerk Knowledge Base Article, “Top Power Transformer Manufacturers in North America.”

Ex.	Description
18	Zetwerk Capabilities Webpage – Transformers (describing transformer offerings through Unimacts and KRYFS).
19	KRYFS Power Components Webpage describing transformer tank fabrication capabilities in India.
20	Press Release, “Zetwerk Makes Its 4th Acquisition, Acquires U.S.-based Unimacts at a Valuation of \$39 Million” (Nov. 30, 2022).
21	Transformer Technology Magazine, “Zetwerk Acquires Majority Stake in KRYFS Power Components to Boost Manufacturing” (Aug. 14, 2025).
22	Unimacts Webpage, “Powering the Future with Reliable, Bankable Transformers.”
23	Syncarpha Capital Project Page for Belfast Community Solar Project (Belfast, Maine).
24	Nidec Industrial Solutions Press Release, “Nidec to be Awarded the EPC Contract in Support of Texas Energy Grid by Gore Street Fund PLC” (Dec. 19, 2023).
25	Plaintiffs’ Verified Original Petition and Application for Temporary Injunction, Unimacts Global, LLC, Zetwerk Manufacturing US Inc., and Zetwerk Manufacturing Businesses Private Limited v. Ayr Energy Inc., Cause No. 2025-79599 (Harris County, Tex. Oct. 17, 2025).
26	Verified Complaint, Zetwerk Mfg. Bus. Pvt. Ltd. v. Edla, O.S. No. ____/2025 (Add’l City Civ. & Sessions Judge, Bengaluru Apr. 2025) (India).
27	Sayari Shipment Search Results for “KRYFS” (Oct. 2025–Mar. 2026).
28A&B	Sayari Shipment Search Results for “Unimacts” and “Zetwerk” (Oct. 2025–Mar. 2026), respectively.
29	Unimacts, Transformers, at 1–3 (captured June 29, 2026) (displaying cULus Listed mark and “\$1B+ in U.S. sales” representation) (with emphasis added).
30	UL Solutions, Product iQ Search Results for “Unimacts” (showing “0 Results”) (captured 2026).
31	UL Solutions, Product iQ Search Results for “Zetwerk” (showing “0 Results”) (captured 2026).
32	UL Solutions, Product iQ Search Results for “KRYFS” (showing “0 Results”) (captured 2026).
33	Letter correspondence between counsel for Ayr Energy and counsel for Unimacts Global, LLC / Zetwerk concerning UL/cULus certification claims (May–June 2026).
34	Zetwerk, Transformers capabilities webpage (captured June 30, 2026).
35	Zetwerk, Choosing the Right Transformer Manufacturer: Key Factors for Industrial Buyers (captured July 1, 2026); Zetwerk, Efficient Energy Delivery: Leading Distribution Transformer Manufacturers You Can Trust (captured July 1, 2026); Unimacts Global, LinkedIn posts concerning transformer lead times

Ex.	Description
	and transformer supply capabilities (captured July 1, 2026) (with emphasis added).

I. INTRODUCTION

1. Complainant Ayr Energy Inc. (“Ayr” or “Complainant”), a corporation organized under the laws of Delaware, respectfully requests that the United States International Trade Commission (“Commission”) institute an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, to remedy unlawful and unfair acts in the importation into the United States, the sale for importation into the United States, and/or the sale within the United States after importation of certain transformer products—including power transformers, distribution transformers, and special purpose transformers—that are manufactured, developed, marketed, and/or sold using Ayr’s misappropriated trade secrets, in connection with false advertising and unfair competition, and/or in a manner that infringes Ayr’s valid and enforceable AYR ENERGY trademark (the “Ayr Mark”) and constitutes false designation of origin (collectively, the “Accused Products”).

2. As set forth more fully herein, proposed Respondents Zetwerk Manufacturing Businesses Private Limited; Zetwerk Manufacturing USA Inc.; Unimacts Global, LLC; KRYFS Power Components Limited; and/or their affiliates, parents, subsidiaries, officers, agents, or related entities (collectively, “Zetwerk” or “Respondents”) have engaged in unfair acts in violation of Section 337 through (i) the misappropriation of Ayr’s trade secrets and the use of those trade secrets in the development, manufacture, and commercialization of the Accused Products; (ii) false advertising and unfair competition in violation of 15 U.S.C. § 1125(a), including the making of false and misleading statements in the marketing of the Accused Products; (iii) trademark infringement in violation of 15 U.S.C. § 1125(a), common law trademark infringement, and false designation of origin in violation of 15 U.S.C. § 1125(a), through the unauthorized use of Ayr’s trademark in connection with the marketing and sale of the Accused Products.

3. Ayr has made significant and continuing investments in its U.S. domestic industry

centered on the development, engineering, commercialization, and deployment of custom transformer systems. These investments include U.S.-based personnel responsible for customer development, proposal generation, logistics, project execution, and repair and warranty service; substantial expenditures on installation, commissioning, and field services performed at project sites across the United States; and ongoing outlays for marketing, sales, and customer acquisition directed to U.S. customers. Ayr's domestic activities are integrated and project-driven, requiring coordinated engineering, sourcing, and operational efforts that implement Ayr's proprietary methodologies in the United States.

4. Respondents' unfair acts have caused and threaten to cause substantial injury to the domestic industry Ayr has established within the meaning of 19 U.S.C. § 1337(a)(1)(A). Section 337 prohibits unfair methods of competition and unfair acts in the importation or sale of articles where the threat or effect of such conduct is to destroy or substantially injure a domestic industry, or prevent its establishment.

5. Respondents' conduct directly distorts competition in the U.S. transformer market by enabling them to compete using improperly acquired proprietary information and materially false commercial representations. These acts have resulted in lost sales, price erosion, and damage to Ayr's customer relationships and goodwill, and have impaired Ayr's ability to compete for current and future projects.

6. To remedy Respondents' continuing and unlawful violations of Section 337, Ayr seeks:

1. A limited exclusion order pursuant to 19 U.S.C. § 1337(d) barring from entry into the United States the Accused Products, including transformer products and related components that are manufactured, developed, or produced using the

Asserted Trade Secrets, marketed or sold using false or misleading commercial representations in violation of 15 U.S.C. § 1125(a), and/or marketed or sold in a manner that infringes the Ayr Mark in violation of 15 U.S.C. § 1125(a) or common law, or that constitutes false designation of origin in violation of 15 U.S.C. § 1125(a); and

2. Cease and desist orders pursuant to 19 U.S.C. § 1337(f) prohibiting Respondents from importing, selling, offering for sale, marketing, distributing, or soliciting the sale of the Accused Products within the United States, including any transformer products that are manufactured, developed, or produced using the Asserted Trade Secrets, marketed or sold using false or misleading commercial representations in violation of 15 U.S.C. § 1125(a), and/or marketed or sold in a manner that infringes the Ayr Mark in violation of 15 U.S.C. § 1125(a) or common law, or that constitutes false designation of origin in violation of 15 U.S.C. § 1125(a).

II. COMPLAINANT

A. Ayr Energy, Inc.

7. Complainant Ayr Energy, Inc., is a corporation organized and existing under the laws of the State of Delaware. Ayr develops, engineers, and commercializes built-to-specification electrical equipment, including power transformers, distribution transformers, inverter duty transformers, high-voltage circuit breakers, and medium-voltage switchgear for the United States market.

8. Ayr owns and/or lawfully possesses protectable rights in the Asserted Trade Secrets. The Asserted Trade Secrets consist of confidential technical, engineering, manufacturing, supplier sourcing, pricing, and strategic business information developed for Ayr's business and maintained as proprietary information through reasonable measures to preserve secrecy.

9. Ayr has also developed substantial goodwill in the Ayr Mark, which it has used continuously in U.S. commerce in connection with its transformer products, engineering services, and related power-grid infrastructure solutions. The Ayr Mark is inherently distinctive and serves as a source identifier for Ayr’s bespoke transformer offerings, which are marketed to U.S. utilities, renewable energy developers, data centers, and industrial customers. Through its commercial activities—including website branding, digital and social media marketing, investor and customer outreach, and direct proposal activity—Ayr has invested significant resources to build recognition of the Ayr Mark as synonymous with high-quality, custom-engineered transformer systems tailored to U.S. specifications. As a result of these efforts, the Ayr Mark has come to signify Ayr’s reputation for technical expertise, responsive proposal generation, and reliable delivery of project-specific transformer solutions in the United States market.

B. Ayr’s Leadership and Innovation in the U.S. Power Transformer Market

10. Ayr engages in the development, engineering, and commercialization of built-to-specification electrical equipment for the United States market, including power transformers, inverter duty transformers, distribution transformers, and related high-voltage electrical components. These products are designed to meet U.S. utility, renewable energy, and industrial specifications and incorporate proprietary engineering designs, sourcing strategies, manufacturing processes, and commercial frameworks developed and maintained by Ayr.

11. Ayr was formed to address the growing demand in the United States for domestically supported, specification-driven transformer solutions serving utilities, renewable energy projects, data centers, and industrial customers. The U.S. transformer market is characterized by high technical barriers to entry, long lead times, complex supplier networks, and strict performance and regulatory requirements. Success in this market depends on specialized engineering know-how, vetted supplier relationships, cost-modeling expertise, and carefully

developed commercial strategies—areas in which Ayr has invested significant effort and resources. Ex. 1 (Reddy Decl.) ¶¶ 6–15.

12. Ayr’s competitive position in the transformer market reflects substantial investments in technical development, supplier qualification, market analysis, customer engagement, and product commercialization directed toward U.S. customers. Ayr’s proprietary technical and commercial information—including engineering specifications, supplier data, pricing methodologies, sourcing strategies, and strategic market assessments—provides it with a competitive advantage in bidding, designing, and supplying transformer products tailored to U.S. requirements.

13. Ayr’s activities include U.S.-focused engineering development, business development, investor engagement, and commercialization efforts directed toward transformer products for the U.S. market. These efforts require coordination of engineering design, materials sourcing (including core steel, windings, tanks, and insulation systems), regulatory compliance considerations, and project-specific customization for U.S.-based customers. Ex. 1 (Reddy Decl.) ¶¶ 16–24.

14. Ayr’s success and growth trajectory in the transformer sector are directly tied to its proprietary technical and commercial information, the goodwill associated with the AYR ENERGY mark, and the substantial investments Ayr has made to develop, protect, and commercialize each of these assets. Respondents’ conduct—including the misappropriation and unauthorized use of Ayr’s confidential and proprietary information, the unauthorized use of and trading upon the Ayr Mark, and the dissemination of false and misleading commercial statements regarding the origin, capabilities, and characteristics of Respondents’ competing transformer products—undermines Ayr’s competitive position in a highly specialized and capital-intensive

industry. Each of these acts constitutes the type of unfair method of competition and unfair act in importation that Section 337 was intended to address.

15. As set forth further below, Ayr's investments in engineering development, business operations, commercialization, marketing, and brand-building activities within the United States establish a domestic industry that is being injured by Respondents' unfair acts within the meaning of 19 U.S.C. § 1337(a)(1)(A), including with respect to (i) Ayr's proprietary technical and commercial information, (ii) the AYR ENERGY mark and associated goodwill, and (iii) the truthful commercial representations Ayr makes regarding the origin, performance, and capabilities of its U.S. transformer products.

III. PROPOSED RESPONDENTS

A. Zetwerk Manufacturing Businesses Private Limited

16. Upon information and belief, Zetwerk Manufacturing Businesses Private Limited ("Zetwerk India") is a corporation organized and existing under the laws of India, with its principal place of business at: #84/1, 2nd & 3rd Floor, Vaishnavi Sovereign, Green Glen Layout, Bellandur, Bangalore, Karnataka 560103, India. Upon information and belief, Zetwerk India designs, develops, engineers, sources, manufactures, and/or coordinates the manufacture of transformer products and related electrical equipment, including products intended for the United States market.

B. Zetwerk Manufacturing USA Inc.

17. Upon information and belief, Zetwerk Manufacturing USA Inc. ("Zetwerk USA") is a corporation organized and existing under the laws of Delaware, with a principal place of business at: 548 Market St. #70774, San Francisco, California 94104. Ex. 4 (Cal. SOS Statement of Information for Zetwerk USA).

18. Upon information and belief, Zetwerk USA operates as a U.S.-based affiliate of

Zetwerk India and participates in the marketing, sale, distribution, and/or commercialization within the United States of transformer products and related electrical equipment.

C. Unimacts Global, LLC

19. Upon information and belief, Unimacts Global, LLC (“Unimacts”) is a limited liability company organized and existing under the laws of Delaware. Unimacts holds itself out as being headquartered at 14600 Arville St., Sloan, Nevada 89054, Ex. 5 (Unimacts Contact Us Webpage), but has represented to the Nevada Secretary of State that it is headquartered at a single-family home located at 2 Sedge Road, Lexington, MA 02420, USA. Ex. 6 (Nev. SOS Entity Information for Unimacts). Zetwerk India acquired Unimacts in or about November 2022. Ex. 20 (Zetwerk-Unimacts Acquisition Press Release). Upon information and belief, Unimacts manufactures, sources, distributes, and/or sells industrial and electrical components and equipment in the United States, including transformer-related products and components.

D. KRYFS Power Components Ltd.

20. Upon information and belief, KRYFS Power Components Ltd. (“KRYFS”) is a public limited company organized and existing under the laws of India, with its registered office and principal place of business at: 3rd Floor, AZA House, 24 Turner Road, Bandra (West), Mumbai, Maharashtra 400050, India. Upon information and belief, KRYFS designs, develops, engineers, manufactures, and sells transformers, transformer cores, transformer laminations, transformer tanks, and related electrical components from multiple manufacturing facilities across India, including products intended for and shipped to the United States market.

21. Upon information and belief, in or about August 2025, Zetwerk India acquired a majority equity interest in KRYFS, and KRYFS has since operated as a subsidiary and integrated part of the Zetwerk family of companies. Ex. 21 (Zetwerk-KRYFS Acquisition Article). Upon information and belief, since that acquisition, KRYFS’s transformer and transformer-component

manufacturing operations have been coordinated with, directed by, and/or operated in concert with Zetwerk India and Zetwerk USA, including with respect to the development, manufacture, marketing, sale, and importation into the United States of transformer products.

22. Upon information and belief, each Respondent—alone or in concert with one or more of the other Respondents—sells for importation into the United States, imports into the United States, causes the importation into the United States of, sells within the United States after importation, and/or directs or controls the manufacture abroad of transformer products and transformer components that are imported into the United States and that are manufactured, developed, or produced using Ayr’s Asserted Trade Secrets.

E. Respondents Operate as Alter Egos, Agents, a Single Business Enterprise, and/or Otherwise in Concert and Cooperation

23. Each Respondent is properly named in this Investigation in its own right. In addition, the Respondents are alter egos of one another, components of a single business enterprise operating under common ownership, management, and control, and/or agents of one another for purposes of the manufacture, marketing, sale for importation, and sale after importation of the Accused Products. The unfair acts of each Respondent are therefore attributable to each of the others under Section 337.

24. Across the U.S. jurisdictions whose laws could potentially govern the relationships among Respondents, the standards for alter-ego liability, single-enterprise treatment, and agency are similar. Relevant indicia include common ownership, officers, and directors; common strategic and operational control; inadequate capitalization; failure to observe corporate formalities; intermingling of funds, personnel, contracts, and intellectual property; treatment of affiliates as departments or divisions; use of one entity’s personnel or assets by another without arm’s-length compensation; holding the entities out as a single enterprise; and use of the corporate

form to shift risk from the entity that benefits economically. These indicia are present here.

25. **Common ownership and control.** Zetwerk USA is, upon information and belief, a wholly owned subsidiary of Zetwerk India. As noted above, Unimacts has been a wholly owned subsidiary of Zetwerk India since on or about September 2022. KRYFS has been a majority-controlled subsidiary of Zetwerk India since on or about August 2025. Upon information and belief, Zetwerk India's co-founders, Amrit Acharya and Srinath Ramakkrushnan, direct and control the strategic, financial, and operational activities of all three subsidiaries.

26. **Respondents' own admissions of integrated operations.** In a proceeding filed by Zetwerk India, in India, on or about April 2025, Zetwerk India represented to the court that it and Zetwerk USA share the same "shareholder structure," "maintain unified operations and strategic oversight," and do not observe corporate formalities as between themselves. Ex. 26 (Zetwerk v. Edla Verified Plaint). In a separate action filed in Texas state court on or about October 17, 2025, Zetwerk USA and Unimacts alleged that Zetwerk India directed the integration and strategic development of Zetwerk USA and Unimacts, including assigning common management, overseeing the overall U.S. business, and directing development of a transformer business unit under Unimacts, reflecting an integrated operational structure among the entities. Ex. 25 (Unimacts v. Ayr Energy Verified Petition). Indeed, Respondents have repeatedly held the two companies out as a single enterprise called "Zetwerk-Unimacts." Exs. 7–8 (Zetwerk-Unimacts Instagram Post & Case Study). Respondents further pleaded that the same purported "trade secrets" and fiduciary and other obligations were owned by, and owed to, all three of Zetwerk India, Zetwerk USA, and Unimacts jointly, without regard to which entity nominally employed the personnel at issue—admitting that Respondents do not maintain meaningfully separate corporate identities. Ex. 25 (Unimacts v. Ayr Energy Verified Petition).

27. **Failure to observe corporate formalities and commingling.** Upon information and belief, Respondents do not observe the corporate formalities that ordinarily distinguish separate corporate persons—including separate strategic decision-making, arm’s-length intercompany transactions, separate human-resources administration, and separate financial accounting. Employees nominally retained by one Respondent regularly perform substantial duties for others without separate agreements, compensation, or arm’s-length cost allocations. For example, Mr. Anirudh Reddy—employed under written agreement only by Zetwerk USA—was directed by Zetwerk India to serve as a “named director” of multiple Zetwerk-affiliated entities (including Zetwerk USA and Unimacts), to develop benefits and equity-award programs spanning U.S. and Indian personnel, and to serve as interim CEO of Unimacts, all without separate compensation from or agreement with Unimacts. Upon information and belief, Respondents likewise commingle revenues, expenses, and account balances and do not maintain arm’s-length transfer pricing for goods, services, personnel time, or (as previously described) intellectual-property use.

28. **Commingling of proprietary information and credit.** Upon information and belief, Respondents treat trade-secret and proprietary information generated or acquired by any one Respondent as belonging to the enterprise as a whole. In the Texas action, Respondents collectively asserted ownership of the same “trade secrets” without regard to which entity originated them—including by accusing Mr. Stuckey, employed only by Unimacts, of misappropriating “trade secrets” belonging to all Respondents and violating an alleged fiduciary duty purportedly owed to all Respondents. Ex. 25 (Unimacts v. Ayr Energy Verified Petition). Respondents likewise claim each other’s commercial credit and sales as their own—for example, representing to U.S. customers that Unimacts has supplied “[over] \$1 [billion] in [products] to

U.S. customers” without distinguishing among entities, and attributing to Zetwerk a transformer “track record” across multiple countries without identifying which Respondent was actually responsible. Exs. 12, 35 (Zetwerk Transformers Webpages & Marketing Materials).

29. **Respondents hold themselves out to the U.S. market as a single enterprise.** Zetwerk states that it “supplies power transformers across North America with on-ground fulfillment and logistics support through Unimacts,” and separately represents that it “delivers complete transformer solutions through Unimacts, powered by KRYFS’ 40-year legacy in core and tank manufacturing.” Exs. 17–18 (Zetwerk Knowledge Base Article & Capabilities Webpage). Zetwerk also promotes “Advanced tooling developed through Unimacts,” represents that Zetwerk supports “every Unimacts/KRYFS project,” and describes providing manufacturing, transformer products, switchyard and protection components, speed and reliability, and global logistics through Unimacts and/or KRYFS. Ex. 18 (Zetwerk Capabilities Webpage). Unimacts’ website likewise cross-markets the three entities under a “Unified Model” heading, identifies the role of each entity, represents that the combination “creates a single-source, manufacturing-driven solution” for transformers, and includes “About Zetwerk” content on its “Who we are” page. Exs. 10, 15 (Unimacts Blog Post and “Who we are” page).

30. **Actual operation as a single entity.** This division of labor is not merely a marketing construct; it reflects Respondents’ actual operating model. Zetwerk India and KRYFS manufacture and/or supply transformers and transformer components in India; Zetwerk USA and Unimacts solicit, sell, import, fulfill, and deliver those products to U.S. customers; and Zetwerk India directs the strategic and commercial activities of its U.S.-facing affiliates. Respondents’ own materials describe this integrated structure, stating that Zetwerk supplies power transformers across North America “with on-ground fulfillment and logistics support through Unimacts” and

that Zetwerk delivers complete transformer solutions through Unimacts, powered by KRYFS' claimed legacy in core and tank manufacturing. Exs. 17–18 (Zetwerk Knowledge Base Article & Capabilities Webpage). Respondents' pleadings likewise allege that Zetwerk India “direct[ed] the strategy” for Zetwerk USA and Unimacts, effectively treating those entities as controllable business sub-units. Ex. 25 (Unimacts v. Ayr Energy Verified Petition). Public shipment records further show shipments involving KRYFS, Zetwerk, Unimacts, and their affiliates, including shipments of transformer components and related goods into the United States. Exs. 27–28 (Sayari Shipment Results). No Respondent, standing alone, conducts the full manufacture-to-delivery cycle for the Accused Products.

31. **Inequitable result.** Recognition of Respondents' separate corporate forms in this Investigation would sanction fraud and promote injustice. Respondents position the foreign manufacturing entities (Zetwerk India and KRYFS) outside customary U.S. enforcement reach while positioning the U.S.-facing entities (Zetwerk USA and Unimacts) as ostensibly distinct persons that disclaim responsibility for their foreign affiliates' conduct—even as they trade on each other's capabilities and credentials to solicit U.S. customers. Respondents invoke corporate separateness when it suits them legally and ignore it when it suits them commercially.

32. **Agency.** Independently, each Respondent's acts in connection with the manufacture, sourcing, marketing, importation, sale for importation, and sale after importation of the Accused Products were undertaken on behalf of, at the direction of, or for the benefit of one or more of the other Respondents, such that each is also the agent of each of the others for purposes of Section 337(a)(1)(A). As alleged in Section VI below, Mr. Yash Jain's misappropriation of Ayr's Asserted Trade Secrets was likewise undertaken as Zetwerk's agent and for the benefit of the Zetwerk enterprise *as a whole* (i.e., for the benefit of Zetwerk India, Zetwerk USA, Unimacts,

and KRYFS), and Respondents have likewise collectively used and benefited from that misappropriation in connection with the importation, sale for importation, and sale after importation of the Accused Products.

IV. THE ACCUSED PRODUCTS AT ISSUE

33. Pursuant to 19 C.F.R. § 210.12(a)(12), the category of products accused are certain transformer products, including power transformers, inverter duty transformers, distribution transformers, and components thereof, such as core steel, windings, tanks, and insulation systems, designed for use in the United States market.

34. Upon information and belief, the Accused Products are manufactured abroad and imported into the United States, sold for importation into the United States, and/or sold within the United States after importation by or on behalf of Respondents. These products are marketed and supplied to U.S. utilities, renewable energy developers, industrial customers, and other U.S.-based purchasers.

35. Ayr asserts each of its claims for trade-secret misappropriation, false advertising and unfair competition, and trademark infringement and false designation of origin against all Accused Products. While the factual basis and manner of violation differ by theory of unfair act, the scope of the Accused Products is the same across all asserted claims. With respect to Ayr's trade-secret misappropriation claims, the Accused Products are developed, designed, engineered, priced, sourced, or proposed using the Asserted Trade Secrets. With respect to Ayr's false advertising claims, the Accused Products are marketed, advertised, offered for sale, or sold in connection with the challenged representations regarding UL certification, manufacturing experience, delivery lead times, and/or track record and past performance. With respect to Ayr's trademark claims, the Accused Products are marketed, advertised, offered for sale, or sold through consumer-visible use of AYR ENERGY, AYR, or confusingly similar variants of the Ayr Mark.

V. THE AYR TRADE SECRETS

A. Background on Ayr's Transformer Business

36. Ayr develops, engineers, sources, and commercializes built-to-specification transformer systems for the United States market, including power transformers, inverter duty transformers, distribution transformers, and related high-voltage electrical equipment. Ayr's products are not generic, off-the-shelf goods. They are custom-engineered systems designed to meet customer-specific electrical, mechanical, performance, regulatory, delivery, and project-execution requirements.

37. Custom main power transformers ("MPTs") are among the largest, most complex, and most capital-intensive pieces of electrical equipment deployed in the U.S. power grid. A single custom MPT can weigh several hundred tons, stand over fifteen feet tall, and require specialized heavy-haul transport—including multi-axle trailers, route surveys, and oversize-load permitting—to move from port of entry to project site. Ex. 1 (Reddy Decl.) ¶¶ 6–8. Each unit is individually engineered to project-specific electrical, mechanical, thermal, and environmental requirements; no two custom MPTs are identical. Ex. 1 (Reddy Decl.) ¶ 9. Manufacturing a custom MPT is a multi-disciplinary undertaking requiring the coordinated design and fabrication of electromagnetic cores, copper or aluminum windings, insulation systems, cooling systems, tanks, bushings, tap changers, and control and protection systems—all integrated to meet exacting performance, efficiency, and regulatory standards. Ex. 1 (Reddy Decl.) ¶ 10. Manufacturing lead times for custom MPTs typically range from approximately 40 to 60 weeks or more from order to shipment—consistent with Respondents' own advertised lead times of "up to 36 weeks" for customized-design transformers and 60 weeks for certain transformer categories. Ex. 35 (Zetwerk & Unimacts Marketing Materials); Ex. 1 (Reddy Decl.) ¶ 12. A single custom MPT unit can cost 5 to 10 million dollars. Ex. 1 (Reddy Decl.) ¶ 13. The technical barriers to entry in the custom MPT segment are

correspondingly high: a supplier must possess not only manufacturing capability, but also the engineering methodologies, specification-development processes, supplier-qualification frameworks, and pricing models necessary to translate a customer's project requirements into a deliverable, bankable transformer solution. Ex. 1 (Reddy Decl.) ¶ 15.

38. Ayr's transformer business depends on proprietary technical and commercial information developed through substantial effort, experience, and investment. That information includes, among other things, confidential formulas and methodologies for developing transformer specifications; methods for responding to customer requests for proposals; electrical design sheets and engineering design documents; technical specifications for custom transformers; confidential customer proposals; materials lists and supplier-selection information; and pricing data and pricing methodologies.

39. Ayr's trade secrets are valuable because they allow Ayr to translate customer requirements into optimized transformer specifications, prepare accurate and competitive proposals, select appropriate components and suppliers, model project costs, and price transformer projects competitively while maintaining margins. The trade secrets also allow Ayr to respond efficiently to customer opportunities and compete effectively in a market characterized by long lead times, technical complexity, supplier constraints, and exacting customer requirements.

40. Ayr's Asserted Trade Secrets are not generally known to, and are not readily ascertainable by, the public or Ayr's competitors. They reflect Ayr's internally developed approach to designing, sourcing, pricing, and commercializing transformer systems for actual and potential customers. A competitor could not replicate Ayr's trade-secret information, or the integrated methodologies reflected in that information, without substantial time, effort, and expense.

B. The Asserted Trade Secrets

41. Ayr asserts trade secrets in the following categories, separately and in combination. These categories include representative embodiments of Ayr's confidential information and proprietary know-how. Certain documents and materials may reflect more than one category of trade secret information, and Ayr's trade secrets also include the combinations, relationships, sequencing, decision rules, and interactions among the technical, sourcing, pricing, and commercial information described below.¹

(a) Customer Specification Formulas and Engineering Methodologies

42. Ayr has developed proprietary formulas and methodologies for calculating transformer specifications for actual and potential customers. These formulas include interdependent calculations used to determine electromagnetic and performance parameters, including flux density, impedance, efficiency, and related design characteristics, based on the customer's transformer needs.

43. Ayr's formulas and methodologies are not isolated calculations. They reflect an integrated approach in which individual design calculations are coordinated and fine-tuned to ensure compatibility, operability, transformer performance, efficiency, and cost effectiveness. The particular way Ayr combines these calculations into an overarching specification-development methodology is confidential and proprietary.

(b) RFP Response and Proposal-Generation Methodologies

44. Ayr has developed proprietary methodologies for responding to customer requests for proposals. These methodologies include Ayr's processes for analyzing customer requirements,

¹ Ayr's visibility into the scope of Mr. Jain's theft remains limited without access to certain information in the possession of Respondents. As a result, Ayr's understanding of the scope of Respondents' misappropriation is subject to change as a result of discovery.

generating transformer specifications, integrating engineering, sourcing, and pricing inputs, and preparing competitive proposals.

45. Ayr's RFP-response methodology includes confidential sequencing, decision rules, and interactions among engineering, sourcing, and pricing information. Those processes allow Ayr to generate accurate, cost-effective, and competitive proposals efficiently and consistently.

(c) Engineering and Technical Design Specifications

46. Ayr has developed confidential transformer electrical design sheets, engineering design documents, and technical specifications for custom transformers. These materials include detailed transformer design parameters, including electromagnetic and mechanical characteristics, dimensions, material selections, configuration decisions, required performance characteristics, design constraints, drawing requirements, documentation requirements, and engineering outputs tailored to specific customer projects.

47. Ayr's engineering and technical design information includes, for example, design information for pad-mounted, three-phase power transformers and other built-to-specification transformer products. This information reflects Ayr's proprietary design methodology and the application of Ayr's confidential engineering judgment to customer-specific requirements.

(d) Technical Specifications for Custom Transformers

48. Ayr has developed detailed technical specifications for specific customer transformer projects. These specifications include required performance characteristics, design constraints, required drawings and documentation, and engineering outputs tailored to individual customer needs and project requirements. Ayr's technical specifications reflect the application of Ayr's proprietary engineering judgment and design methodology to translate customer-specific requirements into optimized, project-ready technical solutions.

(e) Customer Proposals and Project-Specific RFP Response Materials

49. Ayr has developed confidential customer proposal packages and RFP-response materials for transformer projects. These materials include integrated design specifications, engineering calculations, sourcing decisions, pricing information, and project-execution details prepared for actual and potential customers.

50. Ayr's proposals are not generic sales materials. They embody Ayr's proprietary methodology for converting customer needs into technical solutions and commercial offers. The proposals reflect the interaction of Ayr's engineering design process, component and supplier selection, cost modeling, pricing methodology, and project-execution planning.

(f) Supplier, Component, Materials, and Procurement Information

51. Ayr has developed confidential materials lists, component-selection information, supplier-selection information, and sourcing strategies for transformer projects. This information includes the components and materials required for specific transformer designs; the selection, configuration, and integration of those components; supplier capabilities; procurement practices; and strategies for sourcing materials and components.

52. Ayr's supplier and materials information is tailored to function with Ayr's transformer designs and customer-specific project requirements. It enables Ayr to optimize transformer performance, cost, efficiency, manufacturability, and delivery timing when preparing proposals and executing projects.

(g) Pricing Data, Cost Models, and Pricing Methodologies

53. Ayr has developed confidential pricing data, cost models, and pricing methodologies for transformer projects. These include component-level cost inputs, installation cost calculations, project-specific cost calculations, pricing formulas, cost-aggregation methods,

and margin considerations used to generate competitive pricing.

54. Ayr's pricing methodologies integrate technical design information, materials and supplier inputs, installation and logistics considerations, and project-specific commercial requirements. That integrated approach allows Ayr to price projects competitively while maintaining margins.

55. The information comprising each of the foregoing categories of Asserted Trade Secrets—individually and in combination—is not generally known to, and is not readily ascertainable by, the public or Ayr's competitors. Each category derives independent economic value from its secrecy because it enables Ayr to design, source, price, propose, and commercialize custom transformer systems more effectively than competitors lacking access to that information. A competitor could not replicate Ayr's proprietary formulas, methodologies, design specifications, proposal processes, supplier and sourcing strategies, or pricing models without substantial independent time, effort, and expense.

C. Ownership of the Asserted Trade Secrets

56. Ayr owns and/or lawfully possesses protectable rights in the Asserted Trade Secrets. Ayr developed, compiled, refined, and maintained the Asserted Trade Secrets through its own efforts, investments, personnel, consultants, and business operations.

57. The Asserted Trade Secrets were created and maintained for use in Ayr's transformer business, including its design, engineering, sourcing, pricing, proposal, customer-development, logistics, installation, and commercialization activities. Ayr uses the Asserted Trade Secrets to develop transformer products and proposals for actual and potential customers and to compete in the United States transformer market.

58. The Asserted Trade Secrets belong to Ayr and were maintained by Ayr as confidential and proprietary business information. No Respondent had authorization to acquire,

disclose, or use Ayr's Asserted Trade Secrets for Respondents' own transformer business or for the development, manufacture, sourcing, sale, importation, or commercialization of Respondents' accused transformer products.

D. Ayr's Measures to Maintain Secrecy of the Asserted Trade Secrets

59. Ayr has taken reasonable measures to maintain the secrecy of the Asserted Trade Secrets. Ayr maintains its confidential technical, engineering, sourcing, pricing, and commercial information on restricted-access systems. Access to Ayr's internal documents and systems is limited to employees, consultants, and other personnel with a business need to know the information. Ex. 1 (Reddy Decl.) ¶ 58.

60. Ayr also requires employees and consultants with access to Ayr's proprietary information to maintain the confidentiality of that information, including through written confidentiality obligations. Ayr treats its transformer designs, engineering materials, customer proposals, pricing models, supplier information, and related business materials as confidential and proprietary. Ex. 1 (Reddy Decl.) ¶¶ 59–61.

61. Ayr's customer proposal materials and RFP responses are submitted to customers on a confidential basis. Ayr does not publicly disclose the formulas, methodologies, design documents, pricing models, supplier-selection information, or integrated proposal-generation processes that comprise the Asserted Trade Secrets.

62. These measures are reasonable under the circumstances and are sufficient to preserve the secrecy of Ayr's confidential technical and commercial information.

E. Economic Value of the Asserted Trade Secrets

63. The Asserted Trade Secrets derive independent economic value from not being generally known to, and not being readily ascertainable by, the public or Ayr's competitors. Ayr's trade secrets give Ayr a competitive advantage in designing, sourcing, pricing, proposing, and

commercializing transformer products for the United States market.

64. Collectively, the Asserted Trade Secrets enable Ayr to translate customer requirements into optimized transformer specifications, generate accurate and competitive proposals, select appropriate components and suppliers, model project costs, and price transformer projects competitively while maintaining margins. The value of the Asserted Trade Secrets lies not only in individual documents or data points, but also in the way Ayr combines technical, sourcing, pricing, and commercial information into an integrated business model for developing and supplying custom transformer systems.

65. Conversely, a competitor lacking access to Ayr's Asserted Trade Secrets would need to undertake substantial independent development efforts to create comparable design methodologies, proposal processes, supplier and sourcing strategies, and pricing models. The secrecy of Ayr's trade secrets therefore provides Ayr with a meaningful competitive advantage, and Respondents' unauthorized acquisition, disclosure, or use of those trade secrets threatens to cause substantial harm to Ayr's domestic industry.

VI. UNLAWFUL AND UNFAIR ACTS: RESPONDENTS' TRADE SECRET MISAPPROPRIATION

66. Section 337 prohibits "[u]nfair methods of competition and unfair acts in the importation of articles ... or in the sale of such articles" into the United States. 19 U.S.C. § 1337(a)(1)(A).

67. Trade secret misappropriation constitutes an unfair act within the meaning of Section 337. *See, e.g., TianRui Grp. Co. v. ITC*, 661 F.3d 1322 (Fed. Cir. 2011). The Commission evaluates trade secret misappropriation claims under the Defend Trade Secrets Act, 18 U.S.C. § 1836 et seq., and applicable state law. A violation arises when (i) a complainant possesses protectable trade secrets, (ii) a respondent acquires, discloses, or uses those trade secrets through

improper means or in breach of a duty of confidence, and (iii) articles manufactured, developed, or produced using those trade secrets are imported into the United States or sold after importation.

68. As set forth below, Respondents engaged in the misappropriation of Ayr's Asserted Trade Secrets through a coordinated scheme involving the acquisition of Ayr's proprietary information by improper means—including infiltration of Ayr's organization under false pretenses, exfiltration of confidential materials in breach of contractual and fiduciary duties of confidence, and the subsequent disclosure and use of those materials for Respondents' commercial benefit. Respondents have used the misappropriated trade secrets in connection with the development, manufacture, marketing, sale for importation, importation, and sale after importation of the Accused Products.

A. The U.S. Main Power Transformer Market Opportunity and Ayr's Investment

69. Beginning in 2024, federal tax incentives under the Inflation Reduction Act generated a substantial surge in U.S. customer demand for power transformers, particularly main power transformers custom engineered to project-specific specifications for utility, renewable energy, and industrial customers.

70. Ayr's co-founders, Mr. Anirudh Reddy, Mr. Yashashvi Takallapalli, and Mr. Rahul Arora, recognized the substantial business opportunity that this surge in U.S. demand represented for custom MPTs. While Mr. Reddy was still affiliated with Zetwerk working on unrelated projects, the co-founders identified custom MPTs as a strategically important market for U.S. customers and sought to pursue the opportunity. Zetwerk, however, indicated that it did not view custom MPTs as a strategic priority and elected not to pursue the opportunity at that time.

71. Beginning in or about October 2024, Mr. Reddy, Mr. Takallapalli, Mr. Arora, and their team commenced substantial investments in developing the proprietary engineering

methodologies, customer-specification formulas, design specifications, sourcing strategies, and pricing methodologies that underlie Ayr's custom MPT business. Ayr's investment in this proprietary technology and know-how was significant, sustained, and directed specifically at the U.S. custom MPT market.

72. Ayr's investments quickly bore fruit. In early 2025, Ayr commenced sales of its custom MPTs in the United States and rapidly attracted substantial customer interest—confirming the co-founders' earlier apt prediction that there was a significant U.S. market opportunity in that segment.

B. Zetwerk's Belated and Failed Effort to Enter the Custom MPT Market

73. As of late 2024 and early 2025, Zetwerk had some transformer-related experience and component-manufacturing capacity through its affiliates, but had not demonstrated the integrated, U.S.-specific custom MPT engineering, proposal-generation, sourcing, and pricing capability necessary to compete credibly for the U.S. custom MPT projects at issue. Around this same time, having seen the very opportunity Ayr's co-founders had previously identified come to fruition, Zetwerk reversed course and attempted to enter the custom MPT market itself.

74. Zetwerk, however, could not easily replicate what Ayr had developed. Custom MPTs require deep technical know-how, project-specific engineering methodologies, qualified-supplier networks, and pricing and cost-modeling frameworks that cannot be assembled overnight and that Ayr had spent substantial time and resources developing. While Respondents had some prior transformer-related experience and component-manufacturing capacity, they lacked the integrated, U.S.-specific custom MPT proposal, engineering, sourcing, and pricing capability necessary to compete credibly for the specific U.S. projects at issue on the timeline and terms they were offering. That gap created a powerful incentive to acquire Ayr's proprietary information through improper means rather than through legitimate independent development.

C. Mr. Yash Jain's Infiltration of Ayr under False Pretenses

75. Mr. Yash Jain was employed by Zetwerk for over five years, between approximately 2019 and 2024, in various roles related to Zetwerk's commodity trading business. Mr. Jain had no technical background and no experience in the transformer industry. Ex. 1 (Reddy Decl.) ¶ 62.

76. On or about January 2, 2025—at the very time Zetwerk was struggling to enter the custom MPT market on its own and Ayr's business was rapidly accelerating—Mr. Jain approached Ayr regarding a potential consulting opportunity, representing that he had been terminated by Zetwerk because his role had become obsolete. On or about February 3, 2025, Mr. Jain joined Ayr as a consultant via Jayadev, an Ayr affiliate in India, that provided confidential consulting for Ayr Energy pursuant to an agreement whereby Jayadev assigned all work product, including intellectual property (and specifically trade secrets) to Ayr. Ex. 11; Ex. 1 (Reddy Decl.) ¶ 63.

77. As a condition of his engagement, Mr. Jain executed an Employment Agreement that expressly acknowledged he would be handling Ayr's confidential information and that obligated him to maintain the confidentiality of all proprietary information related to Ayr. Ex. 11 (Jain Offer Letter). Mr. Jain's Employment Agreement also required 30 days' notice of termination, consistent with notice practices in the relevant place and industry. Ex. 11 (Jain Offer Letter).

78. During his brief tenure at Ayr, Yash Jain served in an operational and proposal-support role, not as a transformer design engineer (again, he had no technical background). His responsibilities included taking engineering inputs from Ayr's technical personnel, updating cost models, and converting those inputs into pricing and proposal materials for customers. In that role, Yash Jain had access to commercially sensitive Ayr materials, including customer-specific proposals, proposal outputs derived from Ayr's design and costing process, bills of materials,

costing files, and customer/pipeline information. Those materials reflected Ayr’s internal approach to translating customer requirements into transformer specifications, cost structures, pricing, and sales-ready proposals.

D. Mr. Yash Jain’s Rushed Departure

79. Mr. Jain’s tenure at Ayr was short-lived—lasting only approximately two months—and his stated reason for departure was pretextual. On or about March 27, 2025, Mr. Jain abruptly announced his intent to leave, claiming a change of heart and a plan to pursue unrelated “entrepreneurial endeavors.” Despite the 30-day notice provision in his Employment Agreement and customary Indian notice practices, Mr. Jain repeatedly pressed Ayr to allow him to terminate his engagement in fewer than 15 days, providing no explanation for the purported urgency. Ex. 11 (Jain Offer Letter). Ayr ultimately agreed to a 10-day notice period, and Mr. Jain’s final day with Ayr was April 7, 2025. Ex. 1 (Reddy Decl.) ¶ 64.

80. A forensic investigation of Ayr’s document-access logs has since revealed that, despite his insistence on accelerating his departure, Mr. Jain accessed a trove of Ayr’s most sensitive proprietary materials in his final days and, specifically, his final hours at Ayr—including Ayr’s customer proposals, transformer equipment specifications, electrical design sheets, bills of materials, and pricing sheets.

E. Mr. Yash Jain’s Concealed Return to Zetwerk and Zetwerk’s Sudden Custom MPT Capability

81. Mr. Jain’s representations regarding his post-Ayr plans were not true. Rather than pursuing independent entrepreneurial endeavors, Mr. Jain rejoined Zetwerk. Mr. Jain and Zetwerk concealed his return, and neither disclosed to Ayr or publicly that Mr. Jain had returned to Zetwerk—much less that he had assumed a senior transformer-business role. Ex. 14 (Jain LinkedIn Profile); Ex. 1 (Reddy Decl.) ¶ 65.

82. Upon his return, Mr. Jain was elevated to the position of “Delivery Head – Transformers”—a senior leadership role within Zetwerk’s custom transformer business, and a role substantially more technically focused than any position he had previously held at Zetwerk. Ex. 14 (Jain LinkedIn Profile); Ex. 1 (Reddy Decl.) ¶ 66. Again, Mr. Jain had no technical background, no transformer engineering experience, and no relevant qualifications for this role aside from his brief, weeks-long stint at Ayr.

83. Upon information and belief, the materials accessed by Mr. Jain were disclosed to and used by Respondents in connection with Zetwerk’s entry into and expansion within the custom MPT market. Upon information and belief, Respondents used Ayr’s misappropriated trade secrets to develop transformer engineering specifications, prepare and submit RFP responses to U.S. customers, establish supplier and sourcing networks, formulate competitive pricing for custom MPT projects, and generate marketing materials holding Zetwerk out as an experienced custom transformer provider. Shortly after Mr. Jain’s return, Zetwerk overhauled its website and marketing materials to hold itself out as an experienced provider of custom transformers and rapidly scaled its custom-transformer business, including by soliciting U.S. customers, generating RFP responses, and contracting for the supply of custom transformers for importation into the United States. Zetwerk has since publicly proclaimed many millions of dollars in custom transformer sales in the months and years following Mr. Jain’s return—sales that required the integrated custom-MPT capabilities Respondents had not independently demonstrated, as described in Section VI.B above.

84. Upon information and belief, Respondents’ ability to launch and accelerate this business at the speed and scale reflected in their post-April 2025 U.S. push—without the substantial independent investment that legitimate development of those capabilities would have

required—is attributable to Mr. Jain’s misappropriation of Ayr’s Asserted Trade Secrets and his disclosure of those materials to Zetwerk.

VII. UNLAWFUL AND UNFAIR ACTS: RESPONDENTS’ FALSE ADVERTISING AND UNFAIR COMPETITION

85. Section 337 prohibits “[u]nfair methods of competition and unfair acts in the importation of articles . . . or in the sale of such articles by the owner, importer, or consignee.” 19 U.S.C. § 1337(a)(1)(A). False and misleading commercial representations made in connection with the importation, sale for importation, and sale after importation of articles constitute unfair acts and unfair methods of competition under Section 337.

86. As set forth below, Respondents have engaged in a pattern of false and misleading commercial representations across multiple categories—including false claims regarding safety certifications, manufacturing experience, delivery lead times, and track record and past performance—each made in connection with the marketing, sale for importation, importation, and sale after importation of the Accused Products. These misrepresentations, individually and collectively, constitute unfair acts and unfair methods of competition in violation of Section 337.

A. Respondents’ False Representations Regarding UL Certification

87. Respondents have engaged in unfair acts and unfair methods of competition by falsely and misleadingly representing to U.S. customers that their transformer products are UL-certified, cULus Listed, or otherwise certified to applicable U.S. and Canadian safety standards, when they are not.

88. Respondents market the Accused Products to U.S. customers through U.S.-facing websites, promotional materials, sales communications, and other commercial advertising and promotion. These marketing materials are directed to U.S. utilities, renewable energy developers, EPCs, industrial customers, and other purchasers of transformer products for use in the United

States. Respondents' representations are made for the purpose of soliciting U.S. customers and securing sales for importation and/or sales after importation of the Accused Products.

89. In particular, Unimacts' transformer webpage prominently displays a cULus Listed mark in connection with its transformer offerings.



Ex. 29 (Unimacts Transformers Webpage). The cULus Listed mark communicates to customers that the relevant product has been evaluated and certified by UL for compliance with applicable United States and Canadian safety standards. In the transformer market, such certifications are material to purchasing decisions because customers often require transformer products or components to satisfy UL or comparable certification requirements before they may be purchased, installed, energized, or placed into service.

90. Unimacts' use of the cULus Listed mark is false and misleading. Upon information and belief, neither Unimacts nor its transformer products are listed in the UL Product iQ database. *See* Ex. 30 (UL Product iQ Search for Unimacts). Upon information and belief, neither Zetwerk nor KRYFS holds any UL listing for the transformer products that Respondents market for importation into the United States either. *See* Ex. 31 (UL Product iQ Search for Zetwerk); Ex. 32 (UL Product iQ Search for KRYFS). Respondents have therefore represented, expressly or by necessary implication, that their transformer products hold a certification they do not hold.

91. Respondents' own communications confirm the falsity of these representations. In correspondence between counsel, Respondents did not contend that Unimacts itself holds a UL certification. Ex. 33 (Counsel Correspondence re UL Claims). Instead, Respondents asserted only

that customers sometimes request UL-certified components or products and that Unimacts can provide UL-certified components, manufacturers, factories, or transformers “when requested.” Respondents’ advertising, however, does not state that Unimacts could potentially source or provide UL-certified components *upon request*. Rather, Respondents display the cULus Listed mark in connection with their transformer offerings under the heading “CERTIFICATIONS”, thereby representing that Unimacts and its transformer products hold a “certification” that, upon information and belief, they do not hold. That is like a car manufacturer stamping a five-star safety badge on every vehicle and, when challenged, responding: “We never said it was rated—we said we could add airbags if you asked.” That’s not a certification, it is a misrepresentation.

92. These representations are commercial advertising or promotion. They are made in public-facing marketing materials and sales communications intended to influence purchasing decisions in the U.S. transformer market. They concern the nature, characteristics, qualities, and certification status of Respondents’ transformer products. And they are material because safety certifications, including UL certification or listing status, are important to U.S. customers purchasing transformer products for renewable energy, utility, industrial, and infrastructure projects.

93. Respondents’ false and misleading representations are likely to deceive, and upon information and belief have deceived, customers into believing that Respondents’ transformer products are certified to U.S. and Canadian safety standards when they are not. These misrepresentations give Respondents an unfair competitive advantage by allowing them to present themselves as more qualified, more technically capable, and more compliant with customer and regulatory requirements than they actually are.

94. Respondents’ false and misleading commercial representations are made in

connection with the importation, sale for importation, and sale after importation of the Accused Products. Respondents manufacture, source, or coordinate the manufacture of transformer products and related components abroad and market those products to U.S. customers for delivery into the United States. Respondents' false certification claims are used to solicit and secure U.S. orders for those foreign-manufactured transformer products and therefore have a direct nexus to importation and sales for importation.

95. Respondents' conduct has also injured and threatens to continue injuring Ayr's domestic industry. Ayr competes directly with Respondents in the U.S. transformer market. Ayr accurately represents its capabilities and the certification status of the products and components it can provide. Respondents' false certification claims distort competition by diverting customers from Ayr, impairing Ayr's customer relationships and goodwill, causing lost sales and price pressure, and allowing Respondents to compete for U.S. projects on the basis of false claims regarding certification and compliance.

96. Respondents' false and misleading commercial representations are also willful. Ayr notified Respondents that Unimacts' certification claims were false and misleading, including by identifying Unimacts' use of the cULus Listed mark and the absence of any corresponding UL Product iQ listing. Ex. 33 (Counsel Correspondence re UL Claims). Despite receiving notice, Respondents have refused to provide substantiation demonstrating that Unimacts or the advertised transformer products hold the claimed certification, and Respondents have continued to defend their misleading advertising.

97. For all these reasons, Respondents' false and misleading commercial representations constitute unfair acts and unfair methods of competition in violation of Section 337(a)(1)(A). Ayr seeks relief barring Respondents from importing, selling for importation,

selling after importation, marketing, advertising, offering for sale, or distributing transformer products and related components using false or misleading claims that Respondents, their products, or their components are UL-certified, cULus Listed, or otherwise certified unless such claims are truthful, non-misleading, and substantiated.

B. Respondents' False Representations Regarding Their Transformer Manufacturing Experience

98. As early as summer 2025, Respondents falsely and misleadingly advertised that Zetwerk “delivers complete transformer solutions through Unimacts, powered by KRYFS’ 40-year legacy in core and tank manufacturing.” Ex. 34 (Zetwerk Transformers Webpage). That statement conveys a concrete factual representation about the length and nature of the experience supporting Respondents’ transformer offerings. It communicates to customers that Respondents’ transformer business is backed by a supplier with a decades-long legacy in the specific manufacturing capabilities necessary to deliver “complete transformer solutions.”

99. That representation is false and misleading. As an initial matter, KRYFS did not exist 40 years ago and therefore does not have a 40-year legacy in the first place. But, more importantly, KRYFS’s historical (and unrelated) experience does not establish the broader transformer-manufacturing capabilities Respondents have presented to the market. Upon information and belief, KRYFS’s actual experience was in providing parts to others as a middle-man, not in *manufacturing* the custom main power transformer solutions Respondents were advertising. Respondents used KRYFS’s overstated and mischaracterized experience to lend credibility to Respondents’ newly promoted transformer business.

100. These misrepresentations are material. In the transformer industry, manufacturing experience is a *critical* factor in customer purchasing decisions. Customers purchasing transformers costing millions or tens of millions of dollars evaluate whether a supplier has decades

of relevant manufacturing experience or only a newly assembled capability. The difference between an established transformer manufacturer and a new entrant relying on others' components is material to customer decision-making. Respondents' inflation and mischaracterization of KRYFS's experience misled customers about the maturity, reliability, and technical foundation of Respondents' transformer offerings.

C. Respondents' False and Misleading Lead-Time Representations

101. As early as Summer 2025, Respondents also made false and misleading lead-time claims. Respondents advertised that Zetwerk was a "transformer manufacturer" that "delivers competitive lead times"; that its lead times for customized-design transformers were "shorter" than industry average lead times of "up to 36 weeks"; and that Unimacts offered specific lead times of 60, 30, 28, 24, and 20 weeks for different transformer categories while "consistently outperform[ing] industry averages." Respondents also advertised "streamlined delivery" and "faster lead times." Ex. 35 (Zetwerk & Unimacts Marketing Materials).

102. Those statements constitute actionable factual representations. "Lead time" has a specific meaning in the transformer industry: the time from customer order to delivery. It is a measurable performance metric. Respondents' claims were present-tense and comparative representations about Respondents' *actual, proven* ability to deliver transformers within defined timeframes and outperform industry benchmarks.

103. Those claims were also false and misleading. At the time these statements were made, Respondents had not delivered *any* custom transformers from which lead times could be measured at the time these representations were made. A company that has not completed delivery cannot truthfully claim measured lead times, shorter lead times, competitive lead times, or performance above industry averages. Nor can it truthfully advertise specific lead-time figures as if they reflect actual delivery performance. The advertised measurements did not exist.

Respondents were presenting fabricated metrics as established performance data.

104. The specificity of Respondents' advertising underscores the falsity and materiality of these representations. Numerical lead times and comparative "faster" or "shorter" lead-time claims are objective and verifiable. The context of the advertising confirms that these statements concerned Respondents' own custom-transformer business: the advertisements referred to Respondents as transformer manufacturers, described customized designs and precision-built transformers, and used transformer-manufacturing language. A reasonable customer would understand the statements as claims about Respondents' actual transformer delivery capabilities.

D. Respondents' False Representations Regarding Track Record, Deployments, and Performance

105. As early as Summer 2025, Respondents further misrepresented their experience, track record, and past performance in the transformer market. Respondents advertised that Zetwerk and Unimacts had "established [themselves] as a global player in transformer manufacturing" with "track record[s] [of] transformers . . . successfully deployed in the USA, India, Nigeria, Ghana, and the Middle East." Ex. 12 (Zetwerk Knowledge-Base Webpages). Respondents also claimed to be a "trusted solar transformer manufacturer in India" with a "proven track record of on-time delivery," claimed that each Zetwerk transformer reflected "precision design, durability, and consistent performance—proven across industrial and utility environments," and touted a "proven track record" of "installations across renewable, industrial, and residential sectors." Ex. 12 (Zetwerk Knowledge-Base Webpages).

106. These statements assert concrete facts about past performance: successful deployments, proven on-time delivery, demonstrated performance in industrial and utility environments, and installations across defined market sectors. These are representations that customers can verify and rely on. They are material because customers purchasing custom

transformers place significant weight on whether a supplier has successfully delivered and installed comparable products in demanding environments.

107. Upon information and belief, these statements were false and misleading. Respondents had not delivered custom transformers and therefore could not have the advertised record of successful deployments, proven performance, on-time delivery, or installations across multiple sectors. Respondents' advertising was designed and presented to focus on transformer manufacturing, custom designs, precision-built transformers, and Respondents' own manufacturing capabilities. In that context, customers would understand claims of a "track record" and "proven" deployments as claims about Respondents' own transformer products and services, not unrelated shipments of third-party goods.

E. Respondents' Misrepresentations Were Collectively Material and Have Injured Ayr's Domestic Industry

108. Each of the foregoing categories of false and misleading representations was made in connection with the importation, sale for importation, and sale after importation of the Accused Products. Respondents manufacture, source, or coordinate the manufacture of transformer products abroad and market those products to U.S. customers for delivery into the United States. Respondents' misrepresentations regarding certifications, manufacturing experience, lead times, and track record were each directed to U.S. customers evaluating competing transformer suppliers and were designed to induce purchasing decisions in favor of Respondents' foreign-manufactured transformer products. These representations therefore have a direct nexus to importation and sales for importation within the meaning of Section 337.

109. The false and misleading statements described above were individually and collectively material because they concerned the precise attributes that U.S. customers consider when selecting a transformer supplier: safety certifications, manufacturing experience, delivery

lead times, and past performance and deployment history. These are not peripheral marketing claims. They go to the core commercial considerations that drive purchasing decisions for custom-engineered transformers and related power-grid infrastructure—products that represent multi-million-dollar capital commitments with significant safety, reliability, and project-timeline implications. Respondents’ pattern of misrepresentations across each of these categories was calculated to present Respondents as an established, proven, and technically capable transformer supplier when, upon information and belief, Respondents lacked the experience, certifications, and delivery history their advertising claimed.

110. Respondents’ false advertising has injured and threatens further injury to Ayr’s domestic industry. Ayr competes directly with Respondents in the U.S. transformer market. Ayr accurately represents its capabilities, certifications, experience, and lead times. Respondents’ pervasive misrepresentations distort competition by allowing Respondents to appear more qualified, more experienced, and more capable than they are—thereby diverting customers and sales opportunities from Ayr, impairing Ayr’s customer relationships and goodwill, causing lost sales and price pressure, and undermining the competitive advantage Ayr has earned through legitimate investment and accurate commercial representations. Moreover, the injurious effects of Respondents’ false and misleading representations are not confined to the period during which the representations are actively disseminated. Once false commercial representations enter the marketplace, they shape customer perceptions, influence purchasing decisions, and distort competitive conditions in ways that persist even after the specific advertisements are modified or removed. Customers who received and relied upon Respondents’ false claims regarding certifications, manufacturing experience, lead times, and track record may continue to hold distorted impressions of Respondents’ capabilities (and Ayr’s relative capabilities) and may make

future purchasing decisions on the basis of those false impressions. The Lanham Act recognizes that such residual deception constitutes a cognizable and continuing injury sufficient to support a finding of violation and the grant of appropriate relief. Respondents' false and misleading representations are also willful. Ayr has notified Respondents of the falsity of all the cited advertising claims, and Respondents have failed to substantiate, correct, or withdraw the challenged representations. Respondents' continued dissemination of false and misleading commercial representations despite notice further demonstrates the willful nature of their conduct. Accordingly, Respondents' false and misleading commercial representations, individually and collectively, constitute unfair acts and unfair methods of competition in violation of Section 337(a)(1)(A).

VIII. UNLAWFUL AND UNFAIR ACTS: RESPONDENTS' TRADEMARK INFRINGEMENT, FALSE DESIGNATION OF ORIGIN, AND COMMON LAW TRADEMARK INFRINGEMENT

111. Section 337 prohibits “[u]nfair methods of competition and unfair acts in the importation of articles . . . or in the sale of such articles by the owner, importer, or consignee.” 19 U.S.C. § 1337(a)(1)(A). The Commission has consistently held that trademark infringement, false designation of origin, and related unfair acts in violation of Section 43(a) of the Lanham Act, 15 U.S.C. § 1125(a), as well as common law trademark infringement, constitute unfair acts within the meaning of Section 337 when committed in connection with the importation, sale for importation, or sale after importation of articles into the United States.

112. Ayr Energy is the owner of the AYR ENERGY mark, which it has used continuously in United States commerce since its founding in 2024 as its trade name and specifically in connection with its power-grid infrastructure business, including custom-engineered transformers and related equipment. The AYR ENERGY mark is inherently distinctive: “AYR” is a coined and fanciful term formed from the initials of Ayr Energy’s founders

and has no descriptive, suggestive, or generic meaning in connection with transformers, power-grid infrastructure, or any related goods or services. As a fanciful mark, AYR ENERGY is entitled to the broadest scope of trademark protection. Ayr Energy has built substantial goodwill in the mark through sustained and extensive use, including website branding, social media marketing, investor and community outreach, customer communications, trade publications, industry events, and online advertising. Ex. 9 (Ayr Energy Website & Press Materials). Ayr Energy has made significant investments in advertising and marketing products and services under the AYR ENERGY mark. Ex. 1 (Reddy Decl.) ¶ 52. Ayr Energy has also received more than \$800 million in U.S. equipment orders and shipped numerous bespoke transformer units throughout the United States under the AYR ENERGY name. Ex. 1 (Reddy Decl.) ¶¶ 53–57. The mark has acquired strong secondary meaning among relevant consumers in the U.S. transformer and power-grid infrastructure market.

113. Pursuant to 19 C.F.R. § 210.12(e), Ayr provides the following additional information concerning the Ayr Mark. The Ayr Mark consists of the term “AYR ENERGY,” as described in the preceding paragraph. Ayr has not at any time applied for or attempted to obtain federal registration of the Ayr Mark with the United States Patent and Trademark Office, and there is no pending application for federal registration of the Ayr Mark.

114. Respondents admittedly knew of Ayr Energy and its AYR ENERGY mark when they adopted and used that mark in their own advertising. The parties have been adverse in litigation since at least 2025, and Respondents specifically identified Ayr Energy as a direct competitor in connection with their advertising and marketing activities. Despite this actual knowledge—and in deliberate disregard of Ayr Energy’s prior rights—Respondents caused a paid online advertisement to appear that prominently displayed the AYR ENERGY mark as the

headline text in connection with “Electrical Transformers – Power & Distribution – Full Range of Industrial & Commercial Grade Transformers.” Ex. 13 (Sponsored Ad for Unimacts Transformers).

115. Respondents have attempted to defend their infringement, including because they contend it was the result of selecting AYR ENERGY as a term to be used in connection with Google’s Dynamic Keyword Insertion feature. That, of course, is no defense to Ayr’s claims. But, even more, if true, that only confirms Respondents’ pattern of engaging in unfair trade practices.

116. The advertisement was not authorized, sponsored, approved, or placed by Ayr Energy. It was placed by or on behalf of Respondents and directed interested customers who searched for Ayr Energy to Respondents’ Unimacts transformer website, through which Respondents market, offer for sale, and solicit orders for the Accused Products for importation into and sale within the United States. The advertisement thereby intercepted customers actively seeking Ayr Energy and diverted them to Respondents’ competing offerings under the false pretense of an association with Ayr Energy.

117. Respondents’ conduct constitutes trademark infringement and false designation of origin in violation of 15 U.S.C. § 1125(a), as well as common law trademark infringement. Respondents did not merely bid on a keyword that remained invisible to consumers. Rather, Respondents displayed Ayr Energy’s exact mark in the visible, consumer-facing text of Respondents’ own paid advertisement to promote directly competing transformer offerings. The advertisement thereby used AYR ENERGY as a source-identifying designation for Respondents’ goods and services, communicating to consumers that Respondents’ transformer offerings originated from, were affiliated with, were sponsored by, were approved by, or were otherwise commercially connected to Ayr Energy. A consumer encountering the advertisement would

reasonably believe that the linked website was Ayr Energy's own or that Respondents' offerings were provided in partnership with or under license from Ayr Energy. Such use constitutes trademark infringement and false designation of origin likely to cause confusion, mistake, or deception as to the source, sponsorship, affiliation, or approval of Respondents' goods and services in violation of 15 U.S.C. § 1125(a)(1)(A), and independently constitutes trademark infringement under applicable common law.

118. Respondents' use of the AYR ENERGY mark is likely to cause confusion, mistake, or deception among relevant consumers. The following factors, among others, establish a strong likelihood of confusion: (a) the mark used in Respondents' advertisement is identical to Ayr Energy's mark—the strongest possible indicator of likely confusion; (b) the advertised goods and services—industrial and commercial transformers and power-distribution equipment—are identical to the goods and services Ayr Energy offers under the AYR ENERGY mark; (c) the parties compete for the same customers through overlapping marketing and distribution channels, including online advertising, website marketing, social media, and direct customer solicitation; (d) Respondents acted with actual knowledge of Ayr Energy and its mark, demonstrating deliberate intent to trade on Ayr Energy's goodwill; (e) the AYR ENERGY mark is strong—it is fanciful, inherently distinctive, and has acquired substantial commercial recognition among relevant consumers; and (f) the relevant consumers—utilities, renewable energy developers, EPCs, and industrial purchasers—although sophisticated in their ultimate purchasing decisions, are susceptible to initial-interest confusion when encountering online advertisements that use a competitor's mark to attract attention and divert traffic. These factors overwhelmingly support a likelihood of confusion and demonstrate that Respondents' use of the mark was calculated to trade on Ayr Energy's reputation and goodwill and to divert customers who were specifically seeking

Ayr Energy's products and services.

119. Respondents' misuse of the AYR ENERGY mark is made in direct connection with the importation, sale for importation, and sale after importation of the Accused Products. Respondents' infringing advertisement directed consumers to Respondents' Unimacts transformer website, through which Respondents actively solicit orders for transformer products manufactured abroad and imported into the United States. The infringing conduct therefore has a direct and substantial nexus to the importation and sale of articles within the meaning of Section 337. Respondents' conduct has caused, and threatens to continue causing, substantial harm to Ayr Energy's goodwill, reputation, and competitive position in the United States. Ayr Energy is a young and growing company whose commercial value depends heavily on customers associating the AYR ENERGY mark exclusively with Ayr Energy's engineering expertise, bespoke transformer designs, customer-specific specifications, manufacturing relationships, delivery capabilities, and installation support. Respondents' unauthorized use of that mark causes and threatens the following injuries: (a) diversion of customers actively seeking Ayr Energy to Respondents' competing offerings; (b) confusion among customers regarding the source, sponsorship, or affiliation of Respondents' transformer products; (c) dilution of the distinctiveness and commercial strength of the AYR ENERGY mark; (d) erosion of Ayr Energy's goodwill through association with Respondents' separate products, pricing claims, and commercial conduct; and (e) impairment of Ayr Energy's ability to build and maintain customer relationships during a critical period of market growth.

120. While Respondents have represented that they have removed the infringing ad, they have not provided any binding commitment, court-enforceable stipulation, or structural change to their advertising practices that would prevent recurrence. Furthermore, even if Respondents had

removed the infringing advertisement, the harmful effects of their trademark misuse are not extinguished by cessation. Consumers who encountered the advertisement may retain a false impression of affiliation, sponsorship, or commercial connection between Ayr Energy and Respondents. That residual confusion is particularly injurious here because the U.S. main power transformer market is characterized by long procurement cycles—often spanning a year or more between initial customer engagement and contract award—during which a utility or developer that encountered the infringing advertisement may carry a false impression of Zetwerk-Ayr affiliation into a current or future RFP process, credit Respondents with Ayr Energy’s capabilities, or view Respondents as an Ayr Energy-affiliated alternative when evaluating competing bids. The Lanham Act recognizes that trademark infringement and false designation of origin can cause residual marketplace confusion that outlasts the infringing conduct itself. *E.g., Forum Corp. of N. Am. v. Forum, Ltd.*, 903 F.2d 434 (7th Cir. 1990); *Brookfield Commc’ns, Inc. v. W. Coast Entm’t Corp.*, 174 F.3d 1036 (9th Cir. 1999), *Promatek Indus., LTD v. Equitrac Corp.*, 300 F.3d 808 (7th Cir. 2002). Relief by the Commission therefore remains necessary and appropriate to remedy both the risk of recurrence and the continuing effects of Respondents’ prior infringement.

121. Respondents’ use of Ayr Energy’s mark to promote competing transformer offerings constitutes unfair acts and unfair methods of competition in violation of Section 337(a)(1)(A). Respondents’ conduct constitutes trademark infringement in violation of 15 U.S.C. § 1125(a), false designation of origin in violation of 15 U.S.C. § 1125(a), and common law trademark infringement, and misappropriates Ayr Energy’s goodwill, distorts competition in the U.S. transformer market, and injures Ayr Energy’s domestic industry, business, and reputation. Respondents’ infringement is willful, as it was undertaken with actual knowledge of Ayr Energy’s mark and prior rights, and Respondents have refused to provide adequate assurances of non-

recurrence despite notice. Accordingly, the Commission should issue exclusion orders barring the importation of power transformers, inverter duty transformers, distribution transformers, and components thereof that are, or have been, marketed, advertised, promoted, offered for sale, or sold using AYR ENERGY, AYR, or any confusingly similar variants thereof, and should issue cease and desist orders prohibiting Respondents from selling after importation, marketing, advertising, promoting, distributing, or offering for sale in the United States power transformers, inverter duty transformers (“IDTs”), distribution transformers, and components thereof that are, or have been, marketed, advertised, promoted, offered for sale, or sold using AYR ENERGY, AYR, or any confusingly similar variants thereof.

IX. SPECIFIC INSTANCES OF IMPORTATION AND SALE FOR IMPORTATION

A. Overview

122. As detailed above, the Accused Products fall into two categories: (1) custom main power transformers and components thereof (collectively, “MPTs”) and (2) all other Accused Products, including inverter duty transformers, distribution transformers, and components thereof (collectively, “Non-MPT Products”). AyR asserts each of its claims against all Accused Products. The evidence establishing jurisdictional acts, however, differs by category. As to MPTs, the evidence establishes sales for importation and supports the inference that importation has occurred or is imminent. As to Non-MPT Products, publicly available shipment records document completed importations into the United States.

123. Respondents’ transformer business is built on foreign manufacture followed by importation into the United States. Foreign affiliates manufacture transformers and components abroad; U.S.-facing entities—including Unimacts—provide logistics, fulfillment, and delivery to domestic customers:

Unimacts: A U.S.-Anchored, Globally Enabled Transformer Manufacturer

Unimacts serves as a central hub for transformer manufacturing and delivery across the American power sector. Headquartered in Sloan, Nevada, and operating across four continents, the company brings together U.S. commercial presence with world-class global production capabilities.

How the Unified Model Works

- **Unimacts:** U.S.-based operations, customer engagement, delivery management
- **Kryfs:** 40+ years of transformer manufacturing, CRGO core capability, Tier-1 credentials
- **Zetwerk:** Global supply-chain infrastructure, logistics optimization, compliance readiness

This creates a **single-source, manufacturing-driven solution** for power, distribution, dry-type, pad-mounted, inverter-duty, and oil-filled transformers.

Ex. 15 (Unimacts Blog Post). Respondents advertise transformers as “export-ready units for North American compliance” with “delivery through established logistics channels.” Ex. 16 (Zetwerk Knowledge Base Article re Special Application Transformers). They further state that “Zetwerk supplies power transformers across North America with on-ground fulfillment and logistics support through Unimacts.” Ex. 17 (Zetwerk Knowledge Base Article re Top Manufacturers).

124. Respondents’ own materials identify the foreign facilities in that supply chain. India-based Zetwerk Manufacturing Businesses Private Limited supplies distribution, power, and inverter-duty transformers. Ex. 18 (Zetwerk Capabilities Webpage). Respondents also represent that “Zetwerk delivers complete transformer solutions . . . powered by KRYFS’ 40-year legacy in core and tank manufacturing.” Id. KRYFS operates fabrication facilities in Kherdi and Bhopal, India. Ex. 19 (KRYFS Transformer Tank Fabrication Webpage). When Respondents sell transformer products for delivery to U.S. customers, fulfillment necessarily contemplates importation.

B. Respondents Sell MPTs for Importation

1. MPTs are Custom, High-Value Products Requiring Extended Engineering, Manufacturing, and Delivery

125. MPTs are massive pieces of capital equipment individually engineered and

manufactured for a particular customer and project. A single MPT may cost millions of dollars. Ex. 1 (Reddy Decl.) ¶¶ 6–15. Unlike standardized products, MPTs must conform to project-specific electrical, mechanical, regulatory, transportation, and installation requirements. *Id.* Supplying an MPT therefore requires integrated capabilities encompassing specification development, custom engineering, supplier qualification, pricing, manufacturing oversight, quality control, logistics, and field services. *Id.*

126. Manufacturing lead times commonly extend 40 to 60 weeks or more, even before accounting for ocean freight, customs clearance, heavy-haul transportation, and delivery to the U.S. project site. Ex. 1 (Reddy Decl.) ¶¶ 6–15; Ex. 35 (Zetwerk & Unimacts Marketing Materials). Respondents’ own marketing materials confirm these timelines. Ex. 35.

127. Respondents’ custom MPT business is comparatively new. Upon information and belief, Respondents did not independently possess the integrated capabilities necessary to design, manufacture, deliver, and install custom MPTs before obtaining Ayr’s trade secrets. As detailed in Section VI above, Respondents acquired those capabilities through Mr. Jain’s systematic acquisition of Ayr’s proprietary materials and his subsequent return to Zetwerk in a senior transformer-business role.

128. Given Respondents’ recent entry into the custom MPT market and the extended production timelines involved, Ayr is not presently aware of any custom MPT that Respondents have completed and installed at a U.S. customer site. Respondents’ own marketing materials, however, advertise lead times of approximately 40 to 60 weeks or more. Ex. 35 (Zetwerk & Unimacts Marketing Materials). Respondents acquired the capabilities to compete in this market in or about April 2025 and, upon information and belief, thereafter contracted to supply foreign-manufactured MPTs to U.S. customers. More than sixty weeks have now elapsed. Applying

Respondents' own advertised lead times to their reported contracting activity, it is reasonable to infer that one or more contracted MPTs have been imported, are in transit, or are approaching importation. In all events, the available evidence establishes sales for importation—sufficient in itself to confer Commission jurisdiction—and the evidence of actual or imminent importation provides additional independent grounds.

2. Respondents Have Entered into Contracts to Supply MPTs to U.S. Customers and Projects

129. Respondents have solicited, quoted, and contracted to supply custom MPTs manufactured abroad for delivery to U.S. customers and projects. Upon information and belief, Respondents have entered into one or more such contracts, including with customers identified through Zetwerk's misappropriation of Ayr's trade secrets. Given applicable lead times, the products covered by those contracts may remain in engineering or production and may not yet have reached their project sites. The underlying sales nevertheless have occurred.

130. This sales activity is consistent with Respondents' sustained efforts to develop a U.S. custom-transformer business. Respondents identified and pursued U.S. solar and energy-storage developers as customers for custom transformers, targeting multiple Texas-based customers and projects in Texas and elsewhere. Ex. 3 (Ramakkrushnan Decl.) ¶¶ 6–8. Respondents submitted proposals for U.S. transformer projects valued at millions of dollars. *Id.* ¶¶ 6–8, 12–54.

131. Those transactions contemplated not merely manufacture but delivery and installation at specific U.S. project sites. U.S. customers requested that Respondents quote on a “DDP (delivered, duty paid)” basis “including field services,” requiring Respondents to assume responsibility for importing and delivering the foreign-manufactured transformers. *Id.* ¶¶ 15–16. Respondents thereafter submitted proposals totaling millions of dollars for individual U.S.

projects. *Id.* ¶ 19.

132. Upon information and belief, Respondents’ custom MPT sales activity continued and expanded after the misappropriation of Ayr’s trade secrets in or about April 2025. Respondents obtained one or more contracts requiring them to manufacture MPTs outside the United States and import them for delivery to domestic project sites.

133. Upon information and belief, Respondents have also solicited, quoted, or contracted for additional custom MPT business with U.S. customers beyond the transactions presently known to Ayr.

3. Respondents’ Own Statements Corroborate Their Sales of Custom Transformer Products

134. Respondents’ own statements and commercial materials corroborate that Respondents have obtained U.S. custom-transformer sales requiring foreign manufacture and domestic delivery.

135. First, Respondents have publicly advertised more than “\$1B+ in U.S. sales.” Ex. 29 (Unimacts Website). That figure is not disaggregated by product and does not alone establish the value of *MPT* sales. It does, however, confirm the substantial scale of Respondents’ U.S.-facing operations conducted through the same foreign-manufacturing and fulfillment structure used to supply transformers—and, combined with other MPT-specific evidence, establishes the likelihood of MPT sales for importation.

136. Second, Respondents have marketed their ability to supply customized transformer products to U.S. customers, pursuing developers, submitting project-specific proposals valued at millions of dollars, and quoting DDP pricing inclusive of field services—all characteristics of MPT transactions. Ex. 3 (Ramakrushnan Decl.) ¶¶ 6–8, 12–54.

137. Third, Respondents advertise specific lead times of approximately 40 to 60 weeks

or more for their MPTs. Ex. 35 (Zetwerk & Unimacts Marketing Materials). Respondents have pursued U.S. custom MPT business since at least early 2025 and, upon information and belief, have contracted to supply MPTs manufactured abroad for delivery to U.S. customers. Because more than sixty weeks have elapsed since Respondents entered this market, their own advertised timelines support the reasonable inference that contracted MPTs have been imported, are in transit, or will imminently be imported. Moreover, the very fact that Respondents advertise specific lead times gives rise to an independent inference of completed importations: a manufacturer does not credibly represent that it can deliver custom-engineered MPTs within a defined timeframe unless it has prior experience completing the full production-and-delivery cycle—including importation—for such products.

138. Fourth, Respondents publicly describe an established mechanism for fulfilling those sales, marketing “export-ready units for North American compliance,” “delivery through *established* logistics channels,” and power-transformer supply throughout North America with “on-ground fulfillment and logistics support through Unimacts.” Exs. 16–17. These statements confirm that Respondents’ offering includes delivering foreign-manufactured transformer products to U.S. customers through their cross-border logistics network.

139. Taken together, these representations corroborate that Respondents have contracted to supply custom MPTs to U.S. customers. Their advertised lead times, considered alongside the timing of their sales activity, their foreign-manufacturing model, and their U.S.-fulfillment infrastructure, further support the inference that importation has occurred or is imminent. Respondents’ ability to advertise specific lead times independently supports the inference that they have completed prior MPT deliveries—necessarily involving importation—from which those timelines were derived.

4. Respondents' Public Litigation Statements Further Corroborate Their U.S. Transformer Sales Activity

140. Respondents' publicly filed litigation materials further corroborate their U.S. transformer sales activity. The Ramakkrushnan declaration describes the same sales efforts detailed in Section B.2 above. Ex. 3 (Ramakkrushnan Decl.) ¶¶ 6–8, 12–54.

141. Respondents' redacted Texas pleadings characterize Respondents and Ayr as competing in the same U.S. transformer market, identify Respondents as having “delivered” the same “high-capacity transformer units” offered by Ayr, and describe Respondents' capabilities and value proposition for U.S. critical-infrastructure projects. Ex. 25 (Redacted Texas Pleading) ¶ 36.

142. These statements do not independently identify every executed MPT contract. They nevertheless corroborate the central facts: Respondents actively market and sell customized transformer products to U.S. customers, manufacture them abroad, and undertake to deliver them domestically.

5. Respondents' Contracts Constitute Sales for Importation

143. A contract to supply foreign-manufactured products for delivery in the United States constitutes a “sale for importation” under Section 337, even if the products have not yet entered the country. In *Certain Variable Speed Wind Turbines and Components Thereof*, the ALJ held that respondents' contract for the sale and importation of accused devices established a sale for importation:

144. Respondents have entered into a contract for the sale and importation of accused devices. Therefore, there has been a “sale for importation” of accused devices as provided for in section 337. Inv. No. 337-TA-376, Initial Determination, 1996 ITC LEXIS 251, at *28 (May 30, 1996), *aff'd sub nom. Enercon GmbH v. International Trade Commission*, 151 F.3d 1376 (Fed.

Cir. 1998). The Federal Circuit likewise recognized that a “‘sale for importation’ includes the situation in which a contract for goods has been formed.” *Enercon*, 151 F.3d at 1381.

145. Nor may Respondents avoid the Commission’s authority by pointing to conditions remaining between contract formation and delivery. *Certain Variable Speed Wind Turbines*, 1996 ITC LEXIS 251, at *23–24 (holding that a conditional contract for sale nevertheless constituted a contract for sale). The Commission’s authority extends beyond circumstances in which importation has already occurred. *See Certain Zero-Mercury-Added Alkaline Batteries, Parts Thereof, and Products Containing Same*, Inv. No. 337-TA-493, Initial Determination, 2004 ITC LEXIS 673, at *38 (June 2, 2004) (“[E]ven in cases where importation or sale in the United States has not actually occurred, the subject matter jurisdiction and due process notice jurisdiction for the Commission is sufficient to authorize and empower it to make a final determination.”).

146. The contracts known to Ayr therefore constitute sales for importation. That some contracted MPTs may remain in production or may not yet have been shipped or installed does not eliminate the completed sale for importation or deprive the Commission of authority over the Accused Products.

C. Respondents Have Imported Non-MPT Products

147. Publicly available shipment records establish Respondents’ completed importations of Non-MPT Products, including transformer components, into the United States, identifying recurring importations involving KRYFS, Zetwerk, Unimacts, and affiliated entities. Ex. 27 (Sayari Shipment Results for KRYFS); Exs. 28A–28B (Sayari Shipment Results for Unimacts and Zetwerk).

148. Following Zetwerk’s acquisition of a controlling interest in KRYFS Power Components Limited, KRYFS participated in Respondents’ cross-border transformer supply chain. Ex. 21 (Zetwerk-KRYFS Acquisition Article). Shipment records document repeated

imports from India of conservator-tank assemblies, transformer-tank shells and built cores, and structural sideframes—specialized transformer components associated with KRYFS’ manufacturing operations that fall within the Accused Products. Ex. 27 (Sayari Shipment Results for KRYFS).

149. Shipment records likewise document recurring imports by or for Zetwerk Manufacturing Businesses Private Limited and affiliated entities, including Zetwerk Manufacturing USA Inc. and Unimacts, of aluminum castings, copper components, and fabricated-steel assemblies, all components that can be used in transformer construction. Exs. 28A–28B (Sayari Shipment Results for Unimacts and Zetwerk).

150. Respondents have also publicly identified substantial completed U.S. transformer sales. Unimacts represented approximately \$20 million in transformer sales for U.S. projects in December 2024. Ex. 3 (Ramakkrushnan Decl.) ¶ 48. Unimacts identified the Syncarpha Belfast Project in Maine and the Nidec Dogfish Project in Texas as “Notable Projects” involving its transformer products. Exs. 22–24 (Unimacts Transformers Webpage; Syncarpha Belfast Project Page; Nidec Press Release re Texas Energy Grid). Although the available materials do not establish that those projects used MPTs, they provide additional evidence of completed U.S. transformer transactions and domestic deployments.

151. These records and materials establish that Respondents actively use an established infrastructure to import foreign-manufactured Non-MPT Products—including transformer components—into the United States for delivery to domestic customers and projects.

D. Respondents Have Engaged in Both Sales for Importation and Completed Importations of the Accused Products

152. The evidence establishes both forms of conduct covered by Section 337: sales for importation of MPTs and completed importations of Non-MPT Products, as set forth in Sections

B and C above.

153. The division of evidence between MPTs and Non-MPT Products does not divide Ayr's substantive claims by product. Ayr asserts each of its three categories of claims—trade-secret misappropriation, false advertising and unfair competition, and trademark infringement and false designation of origin—against all Accused Products.

X. CLASSIFICATION OF THE INFRINGING PRODUCTS UNDER THE HARMONIZED TARIFF SCHEDULE

154. Pursuant to Commission Rule 210.12(a)(3), on information and belief, the Accused Products are believed to be imported under HTSUS statistical reporting numbers 8504.21.0020, 8504.21.0040, 8504.21.0060, 8504.21.0080, 8504.22.0040, 8504.22.0080, 8504.23.0041, 8504.23.0045, 8504.23.0080, 8504.32.0000, 8504.33.0020, 8504.33.0040, 8504.34.0000, 8504.90.9610, 8504.90.9634, 8504.90.9638, 8504.90.9642, and 8504.90.9646, which encompass the liquid-dielectric and other electrical transformers, and transformer parts, at issue. These classifications are provided for convenience and are not intended to limit the scope of the requested investigation or remedial orders.

155. This classification is for illustrative purposes for compliance with the Commission Rules and is not intended to restrict the scope of this Investigation.

XI. RELATED LITIGATION

A. Other Litigation Between the Parties

156. On December 2, 2025, Ayr Energy, Inc., Anirudh Reddy Edla, and Chad Stuckey filed an action in the United States District Court for the Northern District of California styled *Ayr Energy Inc., et al. v. Zetwerk Manufacturing USA Inc., et al.*, Case No. 3:25-cv-10345-SK, asserting claims including trade secret misappropriation, unfair competition, trademark infringement, false advertising, and related claims arising from the parties' dispute concerning

transformers and alleged misuse of confidential information. On July 10, 2026, Ayr Energy, Inc., Anirudh Reddy Edla, and Chad Stuckey voluntarily dismissed the action pursuant to Fed. R. Civ. P. 41(a)(1)(A).

157. On or about October 17, 2025, *Unimacts Global, LLC, Zetwerk Manufacturing USA Inc., and Zetwerk Manufacturing Businesses Private Limited v. Ayr Energy Inc.*, Cause No. 25-BC11A-0083 (Texas Business Court, Eleventh Division), was filed against Ayr Energy Inc., asserting claims for trade secret misappropriation and knowing participation in breaches of fiduciary duty based on allegations that Ayr, through former Zetwerk and Unimacts personnel including Anirudh Reddy Edla and Chadwick Stuckey, misused confidential information, customer pipeline information, pricing information, and other alleged trade secrets relating to the transformer and renewable-energy markets. On July 10, 2026, Ayr Energy, Inc., filed its counterclaims, including trade secret misappropriation, unfair competition, trademark infringement, false advertising, and related claims arising from the parties' dispute concerning transformers and alleged misuse of confidential information. The merits have not been adjudicated.

158. In or about April 2025, Zetwerk Manufacturing Businesses Private Limited initiated an action in India against Anirudh Reddy Edla concerning alleged misuse of confidential information and contractual obligations arising from prior employment. *Zetwerk Manufacturing Businesses Private Limited v. Anirudh Reddy Edla*, O.S. No. 3002/2025 (India).

159. In connection with the India proceeding, Zetwerk Manufacturing Businesses Private Limited filed an application pursuant to 28 U.S.C. § 1782 in the United States District Court for the District of Delaware seeking discovery from Ayr Energy Inc., which application was denied by order dated August 13, 2025. *In re Application of Zetwerk India Manufacturing*

XII. EXISTENCE OF A DOMESTIC INDUSTRY

160. Section 337(a)(1)(A) requires that the unfair acts at issue have the threat or effect of destroying or substantially injuring an industry in the United States, or preventing the establishment of such an industry. The “industry” inquiry under (a)(1)(A) is a flexible, fact-driven assessment of the complainant’s U.S.-based activities tied to the articles protected by the asserted trade secrets and marks. *See, e.g., Certain Organic Light-Emitting Diode Display Modules*, Inv. No. 337-TA-1378, Initial Determination at 319–43 (July 11, 2025); *Certain Selective Thyroid Hormone Receptor-Beta Agonists*, Inv. No. 337-TA-1352, Initial Determination at 174–88 (Oct. 3, 2024).

161. Respondents’ unfair methods of competition and unfair acts in the importation into the United States or in the sales after importation of Accused Products by reason of (i) trade secret misappropriation, (ii) false advertising and unfair competition in violation of 15 U.S.C. § 1125(a), and (iii) trademark infringement in violation of 15 U.S.C. § 1125(a), false designation of origin in violation of 15 U.S.C. § 1125(a), and common law trademark infringement have the threat or effect of destroying or substantially injuring an industry in the United States, or preventing the establishment of such an industry. *See* 19 U.S.C. § 1337(a)(1)(A).

162. A domestic industry pursuant to 19 U.S.C. § 1337(a)(1)(A) exists, or in the alternative, Respondents’ unfair acts have the threat or effect of preventing the establishment of such an industry, based on the design, proposal, sale, delivery, installation, commissioning, and servicing of Ayr’s custom transformer systems—each of which directly exploits Ayr’s proprietary business model, including the Asserted Trade Secrets, and is marketed under the Ayr Mark. Ayr’s domestic industry supports each of the unfair-act theories asserted herein.

A. Ayr’s Domestic Industry Products and Activities

163. Ayr’s domestic industry products are its custom-engineered transformer systems sold, delivered, installed, and commissioned for U.S. customers (the “DI Products”). The DI Products span multiple application categories developed for U.S. end-users, including main power transformers for utility-scale solar projects, transformers for battery energy storage systems, and transformers for data-center applications. Ex. 1 (Reddy Decl.) ¶¶ 16–22; Ex. 2 (Arora Decl.) ¶¶ 6–10. The DI Products are designed and configured using Ayr’s Asserted Trade Secrets and are marketed and sold under the Ayr Mark. Ex. 1 (Reddy Decl.) ¶¶ 17–18; Ex. 2 (Arora Decl.) ¶¶ 8–9.

164. Ayr’s competitive position does not rest on a single formula or isolated technical component. It rests on an integrated business model—implemented through U.S.-based operations—that combines:

- (a) proprietary engineering judgment and design methodologies, including the ability to design custom units with project-specific flexibility built in so that the units remain serviceable as customer-side variables evolve during the long lead time between order and energization;
- (b) internally developed pricing and costing approaches calibrated to U.S. market conditions;
- (c) supplier and component sourcing knowledge—including direct relationships with leading global suppliers of transformer components and materials—that secure favorable pricing and priority access; and
- (d) operational processes that enable Ayr to generate competitive, project-specific proposals significantly faster than established competitors

Ex. 1 (Reddy Decl.) ¶¶ 19–23; *see also* Ex. 2 (Arora Decl.) ¶¶ 13–20.

165. Because each DI Product is custom-designed for the technical, environmental, and operational requirements of a specific U.S. project, Ayr’s proprietary methodologies—including the Asserted Trade Secrets—are not implemented once and shelved. They are applied and re-applied across every phase of Ayr’s U.S. operations—proposal development, customer engagement, logistics coordination, installation, and commissioning. Those U.S.-based activities collectively constitute the exploitation of Ayr’s proprietary business model, including the Asserted Trade Secrets, and the commercialization of the DI Products under the Ayr Mark within the United States. Ex. 2 (Arora Decl.) ¶¶ 6–12.

B. Ayr’s Significant U.S. Investments

1. U.S.-Based Operations and Personnel

166. Ayr has built a substantial workforce to support its transformer business, including U.S.-based personnel as well as personnel and contractors in India and other locations who support Ayr’s engineering, operations, finance, supply-chain, quality, sales, marketing, and project-execution functions. Ex. 1 (Reddy Decl.) ¶ 27. Ayr maintains a meaningful U.S.-based workforce, including personnel located at Ayr’s Mountain View, California headquarters and personnel working remotely from other U.S. locations. Ex. 1 (Reddy Decl.) ¶¶ 25–31. Ayr’s near-term plans include expanding both its U.S. workforce and its U.S. operational footprint, including the development of U.S.-based warehousing to support its growing project pipeline. Ex. 1 (Reddy Decl.) ¶¶ 32–33.

167. Ayr’s U.S. workforce performs the high-value functions at the core of Ayr’s business, including:

- (a) Managing customer relationships and originating projects;
- (b) Preparing and delivering project-specific proposals;
- (c) Coordinating engineering, supply chain, and logistics inputs;

- (d) Designing custom transformers based on Ayr’s specifications, configurations, system architecture and project-specific configurations derived from Ayr’s proprietary methodologies, including decisions regarding component selection, system sizing, integration parameters, and performance requirements; and
- (e) Overseeing project execution, including installation and commissioning, and performing warranty services.

Ex. 1 (Reddy Decl.) ¶ 34.

2. Proposal Development and Customer-Facing Operations

168. Ayr’s U.S. personnel are responsible for preparing and submitting each project-specific proposal to U.S. customers. No proposal is generic. Each is custom-developed based on customer-specific requirements, project conditions, and Ayr’s internal design and pricing methodologies. Ex. 2 (Arora Decl.) ¶¶ 13–14.

169. The proposal process relies on the proprietary systems and methodologies that comprise Ayr’s Asserted Trade Secrets—integrating engineering design, bill-of-materials, and pricing inputs to generate competitive bids. These methodologies enable Ayr to generate technically robust proposals significantly faster than established competitors. Ex. 2 (Arora Decl.) ¶¶ 17–18. That speed advantage is the result of Ayr’s iterative development and validation, both through engineering simulation and through real-world transformer performance, and it materially improves Ayr’s customer responsiveness, conversion rates, and ability to compete for U.S. business. Ex. 2 (Arora Decl.) ¶¶ 19–20.

170. Ayr’s U.S.-based commercial efforts have produced a robust pipeline of U.S. projects. As of July 2026, Ayr has closed or contracted to close hundreds of active projects, representing over 800 million in total sales, across dozens of U.S. customers. Ex. 2 (Arora Decl.) ¶ 21. That pipeline has continued to expand and is managed through Ayr’s U.S.-based customer-

relationship infrastructure. Ex. 2 (Arora Decl.) ¶ 22.

171. Ayr personnel negotiate contracts with U.S. customers and remain engaged throughout the project lifecycle, including project execution, delivery and installation, and post-installation support and maintenance coordination. Ex. 2 (Arora Decl.) ¶ 23.

3. U.S.-Based Installation, Commissioning, and Field Services

172. Installation and commissioning of the DI Products are not ancillary or post-sale services. They are a core and indispensable component of Ayr’s business model and product offering. Because Ayr does not sell standardized, off-the-shelf equipment, its transformer systems are not “plug-and-play.” Each installation is project-specific and technically complex, requiring adaptation to site conditions, grid interconnection requirements, and customer-specific operational constraints. Without installation and commissioning, the DI Products cannot be placed into service and the value of Ayr’s proprietary design and engineering work cannot be realized. Ex. 2 (Arora Decl.) ¶¶ 24–27.

173. Ayr’s transformer systems are installed at project sites throughout the United States. These installation activities are performed within the United States and constitute significant domestic operations. Installation is carried out by U.S.-based installation partners, which provide specialized field installation, assembly, and commissioning services, and by Ayr personnel—including Ayr’s U.S.-based field-services lead, logistics coordinators, and technical personnel—who coordinate, supervise, and actively participate in installation activities. Ex. 2 (Arora Decl.) ¶¶ 29–31.

174. Ayr works closely with its installation partners, maintaining continuous coordination before, during, and after installation, including briefing partners on the specifications and integration requirements of each custom unit. Ex. 2 (Arora Decl.) ¶¶ 30–32.

175. The installation of each DI Product involves a coordinated set of U.S.-based

activities, including:

- (a) Site preparation and coordination, including planning for delivery, staging, and installation of large-scale equipment; coordination with customers and contractors; and ensuring site conditions are suitable for installation;
- (b) Physical installation and assembly, including positioning transformer units, mechanical integration of components, and assembly where required;
- (c) Electrical integration, including connecting transformer systems to transmission lines, substations, or other project-specific systems, and ensuring compatibility with existing infrastructure;
- (d) Testing and commissioning, including energization, validation, and operational testing to confirm performance against design specifications and customer requirements; and
- (e) Warranty and maintenance support, including addressing issues during initial operation and coordinating ongoing service and maintenance.

Ex. 2 (Arora Decl.) ¶ 33.

176. Installation is labor-intensive and requires substantial on-site effort. For high-voltage projects, installation typically involves dedicated on-site crews and ranges from several days to several weeks per project, depending on the size, configuration, and complexity of the DI Product. Ex. 2 (Arora Decl.) ¶ 34. On larger projects, total install-and-commission timelines may extend further.

177. Ayr employees play an active and ongoing role throughout installation and commissioning—managing logistics and delivery coordination, working directly with installation partners to plan and execute on-site activities, overseeing commissioning and customer handoff,

and frequently traveling to and being physically present at project sites. These installation and commissioning activities are directly tied to and implement Ayr's proprietary business model, including the Asserted Trade Secrets. Installation realizes proprietary design decisions—including engineering determinations reflected in Ayr's specifications, configurations, and system architecture—and project-specific configurations derived from Ayr's proprietary methodologies. Because the DI Products are custom-designed, installation necessarily requires the application of the same proprietary knowledge and methodologies used during the design and proposal phases and is not a generic or standardized activity. Ex. 2 (Arora Decl.) ¶ 35.

4. Payments to U.S.-Based Installation Partners

178. Ayr incurs substantial and recurring expenditures on U.S.-based labor through its engagement of specialized installation partners. Ex. 2 (Arora Decl.) ¶ 36.

179. For high-voltage projects, Ayr will pay substantial per-project fees for installation and related field services, depending on project size and complexity. Ex. 2 (Arora Decl.) ¶ 37.

180. Ayr has completed numerous U.S. projects to date, resulting in substantial total U.S.-based installation expenditures, with additional expenditures expected from projects under contract or in development. Ex. 2 (Arora Decl.) ¶¶ 38–40.

181. Ayr also purchases significant inputs from U.S.-based suppliers in connection with U.S. installation and commissioning, including transformer oil purchased locally in the United States for delivery to U.S. project sites. Ex. 2 (Arora Decl.) ¶ 41.

182. These payments fund U.S.-based labor performing on-site work necessary to implement the DI Products and represent a meaningful, recurring component of Ayr's U.S. operations. *See Thyroid Agonists*, Inv. No. 337-TA-1352, ID at 185–86 (recognizing that payments to U.S. consultants, manufacturers, and CROs support DI).

5. Logistics, Delivery, and Operational Infrastructure

183. Ayr's U.S.-based field-services and logistics lead, together with Ayr's other U.S. personnel, actively manage and coordinate logistics activities within the United States, including:

- (a) Coordinating customs clearance and import processing, including working with customs brokers and ensuring compliance with U.S. regulatory requirements;
- (b) Arranging inland transportation from ports of entry to project sites, including coordinating with specialized heavy-haul carriers capable of transporting large transformer units;
- (c) Managing delivery schedules and site readiness, including coordination with customers, EPC contractors, and installation partners to ensure that project sites are prepared to receive equipment; and
- (d) Addressing logistical challenges that arise during transport and delivery, including routing constraints, permitting requirements, and project-specific timing issues.

Ex. 2 (Arora Decl.) ¶¶ 43–44.

184. These activities require project-specific planning, coordination across multiple parties, and real-time problem-solving. Ayr's logistics activities are closely integrated with its installation and commissioning operations, and Ayr personnel coordinate directly with installation partners to ensure that the DI Products arrive in the correct sequence and configuration, that equipment is staged appropriately, and that delivery timing aligns with installation schedules and site readiness. Ex. 2 (Arora Decl.) ¶¶ 43–45.

185. Ayr personnel devote substantial time and effort to logistics coordination on a project-by-project basis, including ongoing communication with logistics providers, customers, and installation partners. This coordination is continuous throughout the lifecycle of each project—from shipment through final delivery and integration—and is repeated across Ayr's

growing portfolio of U.S. projects. Ex. 2 (Arora Decl.) ¶ 46.

186. Ayr incurs substantial U.S.-based expenditures in connection with logistics and delivery activities, including payments for freight forwarding and customs brokerage services, inland transportation and heavy-haul logistics, site delivery coordination, and related services. Ex. 2 (Arora Decl.) ¶¶ 47–48.

187. To date, Ayr has incurred substantial costs in U.S.-based logistics and delivery expenditures, with additional expenditures expected for projects under contract or in development. Ex. 2 (Arora Decl.) ¶ 49.

188. Ayr’s logistics and delivery activities are directly tied to the implementation of its proprietary business model, including the Asserted Trade Secrets. Because the DI Products are custom-designed, logistics planning must account for project-specific design parameters—including system configuration, component selection, and installation requirements—and Ayr personnel apply proprietary knowledge in coordinating delivery and site integration. Ex. 2 (Arora Decl.) ¶¶ 50–52.

6. Sales, Marketing, and Customer Development

189. Ayr makes substantial and ongoing investments in the United States in connection with sales, marketing, and customer development. Ayr’s sales activities are conducted by U.S.-based personnel responsible for originating and developing business opportunities with U.S. customers, including utilities, independent power producers, and project developers. Ex. 2 (Arora Decl.) ¶¶ 53–54.

190. Ayr’s sales activities include direct outreach to prospective customers, engagement through industry relationships and referrals, ongoing discussions with developers regarding project requirements, and identification and development of project opportunities within the United States. Ex. 2 (Arora Decl.) ¶ 55.

191. These efforts have produced a substantial U.S. pipeline of active projects, as previously described. *Supra* ¶ 171.

192. Ayr maintains a U.S.-based marketing function—concentrated in California—that supports its sales and customer development activities, including:

- (a) participation in U.S. industry trade shows and conferences;
- (b) digital and online marketing efforts, including LinkedIn and web-based campaigns;
- (c) customer outreach campaigns; and
- (d) development of marketing materials and messaging.

Ex. 2 (Arora Decl.) ¶¶ 56–57.

193. Ayr’s U.S. marketing investment has grown substantially. Ayr has expanded its marketing headcount and engaged multiple outside firms—many of them U.S.-based—to provide PR, marketing, and event/content support. Ex. 2 (Arora Decl.) ¶¶ 58–61. Ayr’s marketing expenditures have increased significantly year over year, reflecting a growing investment in U.S.-based marketing activities. Ex. 2 (Arora Decl.) ¶ 62.

194. Ayr’s sales, marketing, and proposal activities are directly tied to the exploitation of its proprietary business model, including the Asserted Trade Secrets and the Ayr Mark. Ayr’s proposal-development process relies on proprietary methodologies governing transformer design (including U.S.-specific design features), pricing and costing, and supplier and component selection—methodologies that enable Ayr to generate competitive, project-specific proposals and secure business in the United States. Ayr’s marketing and customer-development activities further exploit the goodwill associated with the Ayr Mark and the accurate commercial representations Ayr makes regarding the origin, capabilities, and performance of its transformer products. Ex. 2 (Arora Decl.) ¶¶ 63–66.

C. Ayr's U.S. Investments are Significant

195. Ayr's domestic investments are significant in magnitude, frequency, and relationship to its overall business. Critically, all of Ayr's transformer projects are located in the United States, and all of Ayr's commercial operations are directed exclusively at the U.S. market. Ayr's U.S.-based expenditures therefore do not represent a fraction of a broader global business; they represent the substance of Ayr's commercial activity. The significance of Ayr's domestic investments is accordingly self-evident.

196. To date, Ayr has incurred substantial U.S.-based expenditures associated with the DI Products, including facility, personnel, installation, logistics, and marketing.

197. Ayr's U.S.-based expenditures per project—including the installation costs described above, plus U.S. logistics, oversight, and marketing expenditures—represent a meaningful portion of total project costs and recur across each U.S. project Ayr executes. Ex. 2 (Arora Decl.) ¶ 36.

198. These expenditures are recurring, project-driven, and central to Ayr's ability to implement its proprietary business model, including the Asserted Trade Secrets and the Ayr Mark, in the United States.

D. In the Alternative, Respondents' Unfair Acts Will Prevent the Establishment of Ayr's Domestic Industry

199. In the alternative, even if Ayr's domestic industry is found to be not yet fully established, Respondents' unfair acts have the threat or effect of preventing its establishment. As set forth above, Ayr has made significant and growing investments in U.S.-based personnel, operations, installation, logistics, marketing, and customer development, *supra* ¶¶ 167–199, and maintains a substantial and expanding U.S. project pipeline, *supra* ¶ 171. Ayr has concrete and actively executing plans to further expand its U.S. workforce, operational footprint, and

warehousing capabilities. *Supra* ¶ 167. These investments and activities demonstrate that Ayr is on a clear trajectory to a fully established domestic industry. Respondents' unfair acts have the threat or effect of preventing the establishment of that industry within the meaning of 19 U.S.C. § 1337(a)(1)(A).

200. “The criteria which must be fulfilled to show prevention of establishment of an infant industry are, in many respects, the same as those used to establish that there exists a substantial injury or a tendency to substantially injure the domestic industry.” *Certain Composite Diamond Coated Textile Machinery Components*, Inv. No. 337-TA-160, Initial Determination, 1984 WL 273787, at *78 (May 29, 1984). And as set forth below, there is a causal nexus between the Respondents' unfair acts—(i) trade secret misappropriation, (ii) false advertising and unfair competition, and (iii) trademark infringement and false designation of origin—and the injury and threatened injury to Ayr's domestic industry, and alternatively, to Ayr's ability to establish a domestic industry.

XIII. INJURY TO AYR'S DOMESTIC INDUSTRY

201. As a result of Respondents' unfair acts, Ayr's domestic industry has suffered actual substantial injury and/or the threat of substantial injury.

202. Pursuant to 19 C.F.R. § 210.12(a)(8), because the alleged violations involve unfair methods of competition and unfair acts other than statutory intellectual property infringement, the factual allegations set forth in Sections VI, VII, and VIII above establish the existence of the causes of action underlying each asserted unfair act, as required by § 210.12(a)(8)(i). In addition, and as required by § 210.12(a)(8)(ii), the following paragraphs set forth Ayr's specific injury theories and supporting factual allegations—including data concerning the volume and trend of production, sales, and order backlog of the DI Products; a description of Ayr's facilities and workforce; profit-and-loss information; pricing information; and the volume and sales of Respondents' imports, to

the extent that information is known—demonstrating the existence of a threat or effect to destroy or substantially injure Ayr’s domestic industry and to restrain or monopolize trade and commerce in the United States.

203. **Production Volume and Trend.** Ayr has produced and delivered numerous DI Product units to U.S. customers since commencing commercial operations. Ayr’s sales have increased on a quarter-over-quarter basis, reflecting a sustained upward trajectory. Ex. 1 (Reddy Decl.) ¶¶ 39–43. Because the DI Products are custom-engineered, built-to-order systems, each unit is individually designed and manufactured to project-specific requirements, and production volume is thus necessarily correlated with Ayr’s U.S. sales and project pipeline activity. Ex. 1 (Reddy Decl.) ¶ 40. Respondents’ unfair acts threaten to disrupt this production trajectory by diverting U.S. customer orders that would otherwise sustain and expand Ayr’s production volume.

204. **Sales Volume and Trend.** Ayr has completed more than \$800 million in U.S. sales of the DI Products to date, encompassing numerous completed projects. Ayr’s U.S. sales have grown consistently on a quarter-over-quarter basis, reflecting a sustained upward trend. Ex. 1 (Reddy Decl.) ¶¶ 41–43. As of July 2026, Ayr’s active U.S. project pipeline included hundreds of active opportunities representing significant potential project value across dozens of U.S. customers, and that pipeline has continued to expand. Ex. 2 (Arora Decl.) ¶ 22. Respondents’ unfair acts have placed a substantial and growing share of this pipeline at risk, as described further below.

205. **Order Backlog and Inventory.** Because the DI Products are custom-engineered, built-to-order systems—not standardized, off-the-shelf goods—Ayr does not maintain traditional finished-goods inventory. The functional equivalent of inventory for Ayr’s business is its order backlog: units under contract that are in various stages of engineering, manufacture, transit, or

installation. Ayr currently has numerous DI Product units under contract or in active development for U.S. customers, representing substantial committed project value. Ex. 1 (Reddy Decl.) ¶¶ 40, 44–45. Given the extended manufacturing and delivery lead times for custom transformers described in Section V.A above, Ayr’s order backlog represents a substantial pipeline of future U.S. deliveries and associated domestic installation, commissioning, and field-services activity. Respondents’ unfair acts threaten to diminish this backlog by diverting future orders and impairing Ayr’s ability to sustain the project volume necessary to support its U.S. operations.

206. **Profit-and-Loss Information.** Ayr’s total revenue since commencing commercial operations has been substantial. Ex. 1 (Reddy Decl.) ¶ 46. Revenue attributable to the DI Products constitutes the substantial majority of Ayr’s overall revenue. Ex. 1 (Reddy Decl.) ¶ 47. Ayr’s gross margin on DI Product sales is healthy, reflecting the value added by Ayr’s proprietary engineering methodologies, sourcing strategies, and pricing models. Ex. 1 (Reddy Decl.) ¶ 48. As a young and growing company, Ayr has been investing heavily in building its U.S. operations, workforce, and market position, and its trajectory toward sustained profitability depends on continued growth in U.S. project volume and the preservation of its competitive margins. Ex. 1 (Reddy Decl.) ¶¶ 32–36, 41–42. Respondents’ unfair acts threaten Ayr’s profitability trajectory in two ways: first, by diverting U.S. sales that Ayr would otherwise capture, thereby reducing revenue; and second, by enabling Respondents to use Ayr’s misappropriated pricing intelligence to underprice Ayr in competitive bidding processes, thereby compressing Ayr’s margins on the sales it does win. Ex. 2 (Arora Decl.) ¶ 74; Ex. 1 (Reddy Decl.) ¶¶ 70–71.

207. **Pricing Information.** The DI Products are high-value, custom-engineered capital equipment. Representative per-unit pricing for Ayr’s custom main power transformers is in the millions of dollars per unit, depending on voltage class, MVA rating, and project-specific

requirements. Ex. 1 (Reddy Decl.) ¶ 49. Ayr’s non-MPT products are priced at lower but still significant per-unit levels. Ex. 1 (Reddy Decl.) ¶ 50. Ayr’s pricing reflects the application of its proprietary cost models and pricing methodologies—including component-level cost inputs, installation cost calculations, and margin considerations—which are among the Asserted Trade Secrets. Ex. 1 (Reddy Decl.) ¶ 51; *see also* Ex. 2 (Arora Decl.) ¶¶ 63–65. Respondents’ misappropriation of Ayr’s pricing data and cost models enables Respondents to benchmark their pricing against Ayr’s cost structure and to undercut Ayr in competitive bidding processes, as described further below.

208. **Volume and Sales of Respondents’ Imports.** Respondents have admitted to at least \$20 million in completed U.S. transformer sales as of December 2024. Ex. 3 (Ramakkrushnan Decl.). Upon information and belief, Respondents’ U.S. transformer sales have continued to grow since that date, including through the post-misappropriation custom MPT sales described in Section IX above. Indeed, Respondents claim to have over \$1 billion in U.S. sales to date. Ex. 29 (Unimacts Website: “\$1B+ in U.S. sales”). Publicly available import records confirm that Respondents’ importation of transformer products and components into the United States has been sustained. Import records for KRYFS show repeated shipments of transformer components—including conservator tank assemblies, transformer tank shells, built cores, and structural sideframes—from India to the United States between 2025 and 2026. Ex. 27 (Sayari Shipment Results for KRYFS). Import records for Zetwerk India, Zetwerk USA, Unimacts, and affiliated entities likewise demonstrate ongoing importation of industrial components that can be used in transformer construction, including aluminum castings, copper components, and fabricated steel assemblies / housings. Ex. 28 (Sayari Shipment Results for Unimacts & Zetwerk). The scale and consistency of these importations confirm that Respondents maintain and are expanding an

established import infrastructure for delivering transformer products and components into the United States, and that the volume of Respondents' imports poses a growing threat to Ayr's domestic industry.

A. Substantial Injury to the Domestic Industry and the Likelihood of Continued and Escalating Harm

209. Substantial injury may be established through a broad range of indicia, such as “the volume of imports and their degree of penetration, complainant's lost sales, underselling by respondents, reductions in complainants' [] production, profitability and sales, and harm to complainant's good will or reputation that have adverse effects on the domestic industry established in the investigation.” *Foodservice Equipment*, Inv. No. 337-TA-1166, Comm'n Remand Op. at 74 (internal citations and quotations omitted).

210. Ayr has suffered, and continues to suffer, substantial injury to its domestic industry as a result of Respondents' unfair acts, including lost sales and revenue, price erosion, lost customers, and harm to Ayr's competitive position. These injuries are ongoing and are likely to continue and escalate absent relief.

211. Each of Respondents' three categories of unfair acts—(i) trade secret misappropriation, (ii) false advertising and unfair competition in violation of 15 U.S.C. § 1125(a), and (iii) trademark infringement in violation of 15 U.S.C. § 1125(a), false designation of origin in violation of 15 U.S.C. § 1125(a), and common law trademark infringement—independently satisfies the injury requirement of Section 337(a)(1)(A). While the injuries caused by each category of unfair act are cumulative and mutually reinforcing, Ayr does not rely on any single theory to the exclusion of the others. Each unfair act has independently caused, and threatens to continue causing, substantial injury to Ayr's domestic industry.

1. Lost and At-Risk Sales

212. Respondents' unfair acts have placed at risk, and have the threat or effect of causing the loss of, U.S. sales that Ayr's domestic industry depends on. Ayr and Respondents compete for the same narrow, sophisticated U.S. customer base—utilities, independent power producers, and project developers—that runs multi-supplier bids for custom main power transformers. Customer overlap is direct and confirmed.

213. Respondents' misappropriation of Ayr's Asserted Trade Secrets has disrupted Ayr's customer relationships, and on information and belief has diverted transformer supply contracts from Ayr to Respondents, thereby reducing Ayr's sales and related installation and repair and warranty services. For example, multiple Ayr U.S. customers have also engaged with Zetwerk or its affiliates for competing transformer supply. Ex. 2 (Arora Decl.) ¶ 68. Respondents are able to compete in the custom-transformer market as a direct result of their misappropriation of Ayr's Asserted Trade Secrets.

214. Ayr has also experienced a marked increase in U.S.-customer hesitation, deal delays, and re-opened diligence in the U.S. main-power-transformer market since Respondents' entry.

215. The injury is amplified by the lead times that characterize the U.S. main power transformer market. Because individual transformer projects can carry lead times of a year or more between order and delivery, sales that Respondents secure today translate into deliveries—and U.S. imports—well into the future. As a result, the full magnitude of lost and at-risk U.S. sales attributable to Respondents' conduct is, by the nature of the market, latent and continues to develop. Ex. 1 (Reddy Decl.) ¶ 80; Ex. 2 (Arora Decl.) ¶¶ 69–70.

216. Every lost or compromised U.S. deal represents not only lost transformer revenue, but the lost opportunity to deploy Ayr's U.S.-based transformer-design proposal, engineering,

logistics, installation, field-services operations, and repair and warranty services, the very activities that constitute Ayr's domestic industry. Ex. 2 (Arora Decl.) ¶ 71.

2. Price Pressure and Margin Risk

217. The U.S. main power transformer market is intensely price-sensitive. Transformers are a major cost component of utility-scale renewable, storage, and data-center projects, and customers closely benchmark price across competing bids. Ex. 2 (Arora Decl.) ¶¶ 72–73.

218. Ayr's pricing intelligence—including its master cost files, internal raw-material-cost-to-sales-price ratios, and project-specific pricing methodologies—is a hard-won trade secret, developed through years of iterative customer engagement, supplier negotiation, and market learning. Ex. 1 (Reddy Decl.) ¶¶ 67–69. Ayr relies on that intelligence to quote competitive prices on a rapid timeline and to sustain the margins necessary to support its U.S. operations.

219. Respondents already have, and are positioned to continue to, use Ayr's misappropriated pricing intelligence—including the master cost files Mr. Yash Jain accessed in his final days at Ayr—to underprice Ayr in U.S. bidding processes. Ex. 1 (Reddy Decl.) ¶¶ 70–71; Ex. 2 (Arora Decl.) ¶ 74. This pricing risk is amplified by Zetwerk's affiliated factories and supply-chain partners, which are positioned to quote U.S. business at price points informed by intelligence obtained through the Zetwerk relationship. Ex. 1 (Reddy Decl.) ¶ 71.

220. Because customers in this market run multi-supplier bids and use competing quotes as price benchmarks, Respondents' aggressive U.S. quoting forces Ayr to reduce its bid prices in opportunities where Respondents or their affiliates also bid, compressing Ayr's margins on the business it wins. Ex. 2 (Arora Decl.) ¶ 74; Ex. 1 (Reddy Decl.) ¶¶ 70–73.

221. Respondents' ability to undercut Ayr without having invested the effort, customer engagement, and engineering work that underlie Ayr's pricing intelligence is itself a direct consequence of the misappropriation. Each U.S. quote that draws on Ayr's pricing intelligence

compounds the injury and erodes both the secrecy and the commercial value of Ayr's Asserted Trade Secrets.

3. Harm to Ayr's Market Position and Growth Attributable to Each of Respondents' Unfair Acts

222. Respondents' conduct, including the misappropriation of the Asserted Trade Secrets, the dissemination of false and misleading commercial representations, and the infringement of the Ayr Mark, has independently and cumulatively impaired Ayr's market position and growth trajectory.

223. Ayr operates in a project-based market in which customer relationships and repeat business are critical. A supplier that develops credibility with a customer through a transformer project is well positioned to receive follow-on opportunities for related or future projects. As a result, each lost or compromised opportunity represents not only immediate lost revenue, but also the loss of potential downstream business. Ex. 2 (Arora Decl.) ¶¶ 75–78.

4. Injury From Respondents' False Advertising and Trademark Infringement

224. Respondents' false advertising and unfair competition, and their trademark infringement, false designation of origin, and common law trademark infringement, as described in Sections VII and VIII above, separately and independently injure Ayr's domestic industry.

225. Respondents' false and misleading commercial representations—including the false and deceptive statements regarding Respondents' capabilities, experience, and product origins, and the unauthorized use of Ayr's trademarks, marketing content, and commercial identity, as described above—deceive U.S. customers about the source, history, and substance of Respondents' transformer offerings and create confusion as to the origin of Respondents' products. In a market characterized by long-cycle relationships with a narrow group of sophisticated buyers, these misrepresentations and infringing uses divert customers and project opportunities away from

Ayr in the same multi-supplier bidding processes in which Ayr competes, and erode the goodwill and brand identity on which Ayr's U.S.-based commercial activities depend. Ex. 2 (Arora Decl.) ¶ 78.

226. These injuries are, in part, irreversible: once a customer's perception of source, capability, or project history is corrupted, that perception is difficult to undo. Each false statement and each infringing use compounds the injury and directly undermines the U.S.-based proposal development, customer engagement, installation, and project origination activities on which Ayr's domestic industry depends.

B. Threat of Future Substantial Injury

227. Respondents have also demonstrated a substantial threat of injury to Ayr's domestic industry based on at least their intent to compete aggressively for U.S. main-power-transformer business and to scale their U.S. import activity. Respondents' own public marketing, customer outreach, confirmed U.S. sales, and operational buildout confirm a trajectory of rapidly expanding U.S. penetration.

228. **Active U.S. sales.** Zetwerk has publicly represented that it has secured custom transformer orders for U.S. customers. Ex. 1 (Reddy Decl.) ¶ 75. A former Zetwerk salesperson has confirmed that he closed contracts for custom main power transformers for delivery into the United States, including deals closed in December 2024. Ex. 1 (Reddy Decl.) ¶ 76. Following Mr. Jain's return to Zetwerk in April 2025, Respondents secured additional custom MPT sales commitments from U.S. customers and continued to solicit, quote, and contract for custom transformer business with other U.S. customers. Ex. 1 (Reddy Decl.) ¶ 77. Upon information and belief, Respondents' post-April 2025 sales activity has been conducted using the Asserted Trade Secrets misappropriated by Mr. Jain, and the Accused Products sold, contracted for, or quoted in connection with that activity are manufactured, developed, or produced using Ayr's

misappropriated proprietary information.

229. **Public marketing.** Zetwerk’s public-facing website prominently features North American projects, including projects represented as Zetwerk’s own work. Respondents’ public misrepresentations and misuse of Ayr’s marketing identity will continue and expand absent relief, magnifying the threat of substantial injury to Ayr’s domestic industry.

230. **Operational buildout.** Since Mr. Jain’s April 2025 return to Zetwerk, Respondents have rapidly expanded the engineering, design, and supply-chain capabilities they previously lacked—building out an India-based transformer design team, hiring engineering personnel, and integrating vertically through the KRYFS acquisition.

231. **Pipeline at risk.** Ayr’s substantial U.S. transformer pipeline—comprising numerous active opportunities representing significant potential project value across dozens of U.S. customers as of July 2026, and growing since—is the precise commercial ground on which Respondents are competing. Ex. 2 (Arora Decl.) ¶ 22. Without relief, a substantial and increasing share of that pipeline is at imminent risk.

232. **Industry lead times conceal the full magnitude of the threat.** Because main power transformers carry lead times that can span a year or more between order and delivery, sales Respondents secure today translate into deliveries, and imports, well into the future. The full extent of Respondents’ importation activity will continue to grow even after the misconduct ends, absent injunctive relief.

XIV. RELIEF REQUESTED

233. WHEREFORE, by reason of the foregoing, Ayr respectfully requests that the United States International Trade Commission:

(a) Institute an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, with respect to Respondents’ violations, alone or through their

affiliates, of Section 337 based on the unlawful and unauthorized importation, sale for importation, and/or sale within the United States after importation of the Accused Products, including transformer products and components thereof that are manufactured, developed, or produced using the Asserted Trade Secrets, marketed or sold in connection with false advertising and unfair competition in violation of 15 U.S.C. § 1125(a), and/or marketed or sold in a manner that constitutes trademark infringement in violation of 15 U.S.C. § 1125(a), false designation of origin in violation of 15 U.S.C. § 1125(a), and/or common law trademark infringement;

(b) Schedule and conduct a hearing, pursuant to 19 U.S.C. § 1337(c), for the purposes of (i) receiving evidence and hearing argument concerning whether there has been a violation of Section 337, and (ii) following the hearing, determine that there has been a violation of Section 337 of the Tariff Act of 1930, as amended;

(c) Issue a permanent limited exclusion order, pursuant to 19 U.S.C. § 1337(d), directed to Respondents and their subsidiaries, predecessors, affiliates, agents, successors, and assigns, barring from entry into the United States the Accused Products, including any transformer products and related components thereof that are manufactured, developed, or produced using the Asserted Trade Secrets, marketed or sold in connection with false advertising and unfair competition in violation of 15 U.S.C. § 1125(a), and/or marketed or sold in a manner that constitutes trademark infringement in violation of 15 U.S.C. § 1125(a), false designation of origin in violation of 15 U.S.C. § 1125(a), and/or common law trademark infringement, except those that may be under license of Ayr or as provided by law;

(d) Issue a permanent cease and desist order, pursuant to 19 U.S.C. § 1337(f), prohibiting Respondents, their subsidiaries, predecessors, affiliates, agents, successors, and assigns, and others acting on Respondents' behalf, from importing, selling, offering for sale

(including via the Internet or electronic mail), marketing (including via the Internet or electronic mail), advertising (including via the Internet or electronic mail), licensing, using, demonstrating, distributing, transferring (except for exportation), soliciting United States agents or distributors, or aiding or abetting other entities in the importation, sale for importation, sale after importation, transfer (except for exportation) or distribution of the Accused Products, including any transformer products and components thereof that are manufactured, developed, or produced using the Asserted Trade Secrets, marketed or sold in connection with false advertising and unfair competition in violation of 15 U.S.C. § 1125(a), and/or marketed or sold in a manner that constitutes trademark infringement in violation of 15 U.S.C. § 1125(a), false designation of origin in violation of 15 U.S.C. § 1125(a), and/or common law trademark infringement;

(e) Impose a bond during the 60-day Presidential review period pursuant to 19 U.S.C. §§ 1337(j) to prevent further injury to Ayr's domestic industry relating to each of the Asserted Trade Secrets, the Ayr Mark, and the false advertising and unfair competition, trademark infringement, false designation of origin, and common law trademark infringement described herein; and

(f) Issue such other and further relief as the Commission deems just and proper under the law, based upon the facts determined by the investigation and the authority of the Commission.

Dated: July 16, 2026

Respectfully Submitted,

/s/ Patrick J. McCarthy

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VERIFICATION OF COMPLAINT

I, Anirudh Reddy Edla, in accordance with 19 C.F.R. §§ 210.4 and 210.12(a) declare as follows:

1. I am the Chief Executive Officer and co-founder of Ayr Energy, Inc., and I am duly authorized by Ayr to verify the foregoing Complaint.

2. I have read the Complaint and am aware of its contents.

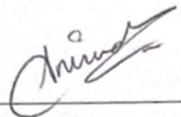
3. To the best of my knowledge, information, and belief, formed after a reasonable inquiry, the Complaint is not being presented for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of the investigation or related proceedings.

4. To the best of my knowledge, information, and belief, formed after a reasonable inquiry, the claims and other legal contentions in the Complaint are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

5. To the best of my knowledge, information, and belief, formed after a reasonable inquiry, the allegations and other factual contentions in the Complaint have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 16, 2026.


Anirudh Reddy Edla